



CHAPTER xcii.

An Act to empower the Southern Railway Company to construct works and acquire lands to confirm the construction of certain works to extend the time for the compulsory purchase of certain lands to transfer to the said Company the undertaking of the Newhaven Harbour Company and for other purposes.

A.D. 1926.

[4th August 1926.]

WHEREAS it is expedient that the Southern Railway Company (in this Act referred to as "the Company") should be empowered to construct the railways widenings and alterations of railways and other works by this Act authorised and to acquire certain lands in this Act described and that the acquisition of other lands already acquired by the Company should be sanctioned and confirmed :

And whereas it is expedient that the construction of certain works of the Company and of the Exmouth Docks Company respectively should be sanctioned and confirmed as by this Act provided :

And whereas it is expedient that the period now limited for the compulsory purchase of certain lands should be extended as provided by this Act :

And whereas by the Newhaven Harbour Improvement Act 1878 the Newhaven Harbour Company (in this Act referred to as "the Newhaven Company") were

A.D. 1926. incorporated for the purpose of improving and maintaining the harbour of Newhaven and were authorised to construct the works therein mentioned and by divers subsequent Acts further powers were conferred upon the Newhaven Company :

And whereas under an agreement dated the sixteenth day of August one thousand eight hundred and seventy-eight and made in pursuance of the said Act between the Newhaven Company and the London Brighton and South Coast Railway Company (predecessors of the Company) the Company are under obligation in perpetuity to work use manage and maintain the undertaking of the Newhaven Company :

And whereas the stocks of the Newhaven Company consist of one hundred and thirty-nine thousand nine hundred pounds four and one-half per centum debenture stock and four hundred and fifty-two thousand pounds general capital stock of which last-mentioned stock one hundred and fifty thousand pounds is held by the Company :

And whereas in pursuance of the Acts relating to the undertaking of the Newhaven Company the Company appoint three directors of the Newhaven Company and now guarantee the payment of the interest on the said debenture stock and of interest at the rate of four per centum per annum on the said general capital stock other than the portion thereof held by the Company :

And whereas in pursuance of the said guarantee the Company and their predecessors have for many years been required to provide considerable sums to make good the deficiency in the revenue of the undertaking of the Newhaven Company :

And whereas it is expedient that the said undertaking should be transferred to and vested in the Company on the terms in this Act mentioned and that the Newhaven Company should be dissolved as provided by this Act :

And whereas it is expedient that the Company and the Great Western Railway Company should be empowered to enter into and carry into effect agreements with reference to the joint working and management of traffic at places served by both of the said Companies :

And whereas the ordinary stock of the Company .A.D. 1926.
now consists of—

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Preferred ordinary stock ...	27,586,601
Deferred ordinary stock ...	27,606,367
Ordinary A stock ...	2,480,198
Ordinary B stock ...	6,110,746

And whereas it is expedient that the said ordinary A stock and ordinary B stock should be converted into deferred ordinary stock in manner provided by this Act :

And whereas it is expedient that the Company should be empowered to apply their funds to the purposes of this Act and to the general purposes of their undertaking and that the Great Western Railway Company should be empowered to apply their funds to the purposes of this Act in which they are interested and that the other powers in this Act mentioned should be conferred :

And whereas plans and sections showing the lines and levels of the works to be constructed under the powers of this Act and plans of the lands by this Act authorised to be acquired and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were deposited with the clerks of the peace for the several counties within which the said works will be constructed and the said lands are situate which plans sections and book of reference are in this Act respectively referred to as “ the deposited plans sections and book of reference ” :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited for all purposes as the Short title.
Southern Railway Act 1926.

2. In this Act unless there be something in the Interpretation, subject or context repugnant to such construction the several words and expressions to which meanings are

A.D. 1926. — assigned by the Acts wholly or partially incorporated herewith have in relation to the relative subject matter the same respective meanings And—

“The Company” means the Southern Railway Company;

“The railways” means the railways by this Act authorised;

“The widenings” means the widenings and alterations of railways by this Act authorised;

“The Newhaven Company” means the Newhaven Harbour Company;

“The date of vesting” means the first day of July one thousand nine hundred and twenty-six; and

“The date of conversion” means the first day of January one thousand nine hundred and twenty-six;

All distances and lengths stated in any description of works or lands shall be read and have effect as if the words “or thereabouts” were inserted after each such distance and length.

Incorporation of general Acts.

3. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts—

Provided that any question of disputed compensation under this Act or any Act incorporated herewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the Board of Trade on the application of either party:

The Railways Clauses Consolidation Act 1845:

Part I. (relating to construction of a railway) Part II. (relating to extension of time) and Part V. (relating to amalgamation) of the Railways Clauses Act 1863:

Provided that for the purposes of the said Part V. the Newhaven Company shall be deemed to be a railway company dissolved by this Act:

The Companies Clauses Consolidation Act 1845 as incorporated with and varied by the Railways (Southern Group) Amalgamation Scheme 1922 : A.D. 1926.

Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts and as incorporated with and varied by the said scheme.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the gas and water mains pipes and apparatus of any local authority or gas or water board and shall be construed as if "local authority" "gas board" and "water board" were mentioned in those sections in addition to "company" or "society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority or gas or water board to which their revenues in respect of gas or water (as the case may be) are appropriated. Protection of gas and water mains of local authorities.

5. Subject to the provisions of this Act the Company may in the lines shown on the deposited plans and according to the levels shown on the deposited sections make and maintain the railways and widenings and alterations of railways hereinafter described with all necessary works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference relating thereto as may be required for those purposes and for any other purposes connected with their undertaking (that is to say) :— Power to make railways and widenings.

In the county of London—

A railway (No. 1) (1 furlong 8·50 chains in length) in the metropolitan borough of Camberwell commencing by a junction with the South London line at a point 10 yards east of the bridge carrying that line over Rye Lane and terminating by a junction with the Crystal Palace Branch at a point 60 yards south-east of the bridge carrying that branch over Albert Road and in connection therewith the Company may make an alteration of Copeland Road and

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Albert Road extending between the premises known as No. 100 Copeland Road and No. 114 Albert Road.

A widening (No. 1) (6 furlongs 7·50 chains in length) of the Crystal Palace Branch and Catford Loop Line on the north side thereof commencing in the metropolitan borough of Camberwell at a point 50 yards north-west of the bridge carrying the said branch over the South London Line and terminating in the metropolitan borough of Deptford at a point 66 yards north-west of the bridge carrying St. Asaph Road over the said loop line.

A railway (No. 2) (3 furlongs 2 chains in length) commencing in the metropolitan borough of Deptford by a junction with the down line of the Crystal Palace Branch at a point 360 yards south-east of the bridge carrying St. Asaph Road over the said branch and terminating in the metropolitan borough of Lewisham by a junction with Widening (No. 2) at a point 50 yards south-east of the bridge carrying the Catford Loop Line over the main line to Brighton from London Bridge.

A railway (No. 3) (3 furlongs 1·90 chains in length) commencing in the metropolitan borough of Deptford by a junction with the up line of the Crystal Palace Branch at a point 360 yards south-east of the bridge carrying St. Asaph Road over the said branch and terminating in the metropolitan borough of Lewisham by a junction with Widening (No. 2) at a point 50 yards south-east of the bridge carrying the Catford Loop Line over the main line to Brighton from London Bridge.

A widening (No. 2) (6 furlongs 4·75 chains in length) in the metropolitan borough of Lewisham of the Catford Loop Line on both sides thereof commencing at the points of termination of Railways (No. 2) and (No. 3) and terminating at a point 440 yards south-east of the bridge carrying the said loop line over Bexhill Road.

A widening (No. 3) (5 furlongs 1·60 chains in length) in the metropolitan borough of Lewisham of the Catford Loop Line on the east side thereof commencing at the point of termination of Widening (No. 2) and terminating at a point 100 yards north-west of the bridge carrying the said loop line over the Mid-Kent line. A.D. 1926.
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In the counties of London and Kent—

A widening (No. 4) (2 miles 3 furlongs 0·80 chain in length) of the Catford Loop Line on both sides thereof commencing in the metropolitan borough of Lewisham at the point of termination of Widening (No. 3) and terminating in the urban district of Beckenham at a point 30 yards north-west of the bridge carrying Downs Hill over the said loop line.

In the county of Kent—

A widening (No. 5) (1 furlong 8·85 chains in length) in the urban district of Beckenham of the Catford Loop Line on the east side thereof commencing at the point of termination of Widening (No. 4) and terminating at a point 400 yards south-east of the bridge carrying Downs Hill over the said loop line.

A railway (No. 4) (2 furlongs 5 chains in length) in the urban district of Beckenham commencing by a junction with Widening (No. 4) at its termination and terminating by a junction with the railway from Beckenham Junction to Shortlands at a point 200 yards north-west of the north-western end of Shortlands Station.

A railway (No. 5) (3 furlongs 1·40 chains in length) in the urban district of Beckenham commencing by a junction with the railway between Beckenham Junction and Shortlands at a point 10 yards east of the bridge carrying Downsbridge Road over the said railway and terminating by a junction with the said railway at a point 167 yards north-west of the north-western end of Shortlands Station:

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Provided that no part of Widening (No. 5) Railway (No. 4) or Railway (No. 5) shall be constructed within a distance of fifty-five feet of the northern abutment of the bridge carrying the railway between Beckenham Junction and Shortlands over Bromley Road.

In the county of London—

A railway (No. 6) (2 furlongs 5·50 chains in length) commencing in the metropolitan borough of Deptford by a junction with the Greenwich Park Branch at a point 67 yards north-east of the bridge carrying Lewisham High Road over the said branch and terminating in the metropolitan borough of Lewisham by a junction with the North Kent Line at a point 50 yards west of the junction of that line with the Mid-Kent Line.

A railway (No. 7) (2 furlongs 3·70 chains in length) commencing in the metropolitan borough of Deptford by a junction with the Greenwich Park Branch at a point 67 yards north-east of the bridge carrying Lewisham High Road over the said branch and terminating in the metropolitan borough of Lewisham by a junction with the North Kent Line at a point 83 yards west of the junction of that line with the Mid-Kent Line.

A railway (No. 8) (2 furlongs in length) in the metropolitan borough of Lewisham commencing by a junction with the Mid-Kent Line at a point 233 yards north-east of the bridge carrying the railway between St. John's and Hither Green over the said line and terminating by a junction with the said railway at a point 57 yards north-west of the bridge carrying that railway over High Street Lewisham.

In the county of Kent—

A railway (No. 9) (1 furlong 4·20 chains in length) in the city of Rochester commencing by a junction with the main line to Chatham at a point 30 yards north-west of the bridge carrying that line over the railway from Strood to Maidstone and terminating by a junction with the

North Kent Line 20 yards north-west of the north-western abutment of the bridge carrying that line over the River Medway. A.D. 1926.
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An alteration of levels (1 furlong 7 chains in length) in the city of Rochester of the North Kent Line between the Strood Junction signal box and the said bridge over the River Medway.

A widening (No. 6) (3 miles 3 furlongs 5 chains in length) of the Sevenoaks and Tonbridge Line on both sides thereof commencing in the parish of Sevenoaks Weald at the southern face of Sevenoaks Tunnel and terminating in the parish of Hildenborough at a point 390 yards south-east of the bridge carrying the said line over the road leading to Well Cottages.

A railway (No. 10) (1 mile 5 furlongs 1·20 chains in length) commencing in the parish of Hildenborough at the termination of Widening (No. 6) and terminating in the urban district of Tonbridge at a point 100 yards east of the bridge carrying High Street over the Tonbridge and Ashford Line.

A railway (No. 11) (4 miles 2 furlongs 4 chains in length) commencing in the parish of Ruckinge by a junction with the Ashford and Hastings Branch at a point 310 yards north of Ruckinge level crossing and terminating in the parish of Smeeth by a junction with the main line from Ashford to Dover at a point 23 yards west of the bridge at the west end of Smeeth Station.

A railway (No. 12) (7 furlongs 7 chains in length) commencing in the parish of Mersham by a junction with Railway (No. 11) at a point 550 yards south-east of the "Farriers Arms Inn" and terminating in the parish of Smeeth at the termination of Railway (No. 11).

A widening (No. 7) (10 miles 6 furlongs 6·40 chains in length) of the Tonbridge and Ashford Line on both sides thereof commencing in the parish of Brenchley at a point 74 yards west of the bridge carrying Maidstone Road over the said line at Paddock Wood Station and terminating in the parish of Headcorn at a point

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560 yards east of the signal box at Headcorn Station.

In the county of East Sussex—

A railway (No. 13) (2 furlongs 6 chains in length) commencing in the parish of Preston Rural by a junction with the Preston Park and Hove Spur Line at a point 150 yards north of the southern face of the Cliftonville Tunnel and terminating in the county borough of Brighton by a junction with the main line from London to Brighton at a point 55 yards north-west of the bridge carrying Dyke Road Drive over that line.

An alteration (1 furlong 3·50 chains in length) of the Preston Park and Hove Spur Line in the parish of Preston Rural being the conversion into an open cutting of so much of the Cliftonville Tunnel as extends for a distance of 297 yards from the southern face thereof.

In the county of Southampton—

A widening (No. 8) (1 mile 3 furlongs 7 chains in length) of the Southampton and Dorchester Railway on the south side thereof commencing in the parish of Millbrook at a point 100 yards east of the bridge carrying that railway over the River Test and terminating in the county borough of Southampton at a point 638 yards west of the western end of Millbrook Station.

A widening (No. 9) (3 miles 5 furlongs 6 chains in length) of the Ringwood Christchurch and Bournemouth Railway and the Bournemouth direct railway on the north side thereof commencing in the county borough of Bournemouth at a point 22 yards west of the bridge carrying Holdenhurst Road over the said first-mentioned railway and terminating in the borough of Christchurch at a point 170 yards west of the bridge carrying the said Bournemouth direct railway over the River Avon.

A widening (No. 10) (3 furlongs 7 chains in length) in the county borough of Bournemouth of the Poole and Bournemouth Railway on the

north side thereof commencing at a point 30 yards west of the bridge carrying the said railway over Prince of Wales Road and terminating at the west side of Queen's Road at a point 70 yards south of Wharf Road.

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In the county of the Isle of Wight—

A widening (No. 11) (1 mile 5 furlongs 8·5 chains in length) of the Isle of Wight Railway on the north-west side thereof commencing in the urban district of Sandown at the north-eastern end of Sandown Station and terminating in the parish of Brading at the south-western end of Brading Station.

6. For the purpose of demanding and recovering tolls fares rates and charges and for all other purposes the railways and the widenings shall be deemed to form part of the undertaking of the Company.

Rates and charges on railways and widenings.

7. If the railways are not completed within the period expiring on the first day of October one thousand nine hundred and thirty-one then on the expiration of that period the powers by this Act granted for making and completing the same respectively or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for completion of railways.

8. If the Company fail within the period limited by this Act to complete the railways and open the same for public traffic they shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railways are completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the railway in respect of which such penalty has been incurred.

Imposing penalty if railways not opened within period limited.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the

A.D. 1926. — Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Minister of Transport that the Company were prevented from completing or opening the railway by unforeseen accident or circumstances beyond their control provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

9. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act for the purposes of such railway and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit.

If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the Company.

As to works
within
metro-

10. Seven days before entering upon breaking up or otherwise interfering with any street or road in connection

with the construction of any works under the powers of this Act within the area of the metropolitan police district the Company shall give notice in writing to the Commissioner of Police of the metropolis and make such arrangements with the said Commissioner of Police as may be reasonably necessary so as to cause as little interference with the traffic in such street or road during the construction of such works as may be reasonably practicable.

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politan
police
district.

11. For the protection of the London Midland and Scottish Railway Company (in this section referred to as "the London Company") the following provisions shall unless otherwise agreed in writing between the Company and the London Company apply and have effect (that is to say) :—

For
protection
of London
Midland and
Scottish
Railway
Company.

- (1) Notwithstanding anything in this Act contained or shown on the deposited plans and sections the Company shall not in connection with the construction of Railway (No. 1) and Widening (No. 1) by this Act authorised enter upon take or use any lands or property of the London Company or construct any works upon or acquire any right of easement over such lands or property or any part thereof save with the consent of the London Company under their common seal :
- (2) If in connection with the construction of Railway (No. 1) authorised by this Act the Company require to alter the position of the existing junctions or connections between their railway and the Peckham Rye goods depôt of the London Company such alterations shall be made so as to afford facilities equal to those now existing for working the traffic to and from the Company's railway and the London Company's depôt and in accordance with plans submitted to and approved by the London Company Provided that if the London Company shall for the space of one month neglect or refuse to approve or shall disapprove the same or if the Company and the London Company fail to agree as to the said plans then the said alterations to the junctions or connections shall be constructed according to plans to be submitted to and approved

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(subject to the special provisions of this section) by an engineer to be appointed on the application of either the Company or the London Company by the President of the Institution of Civil Engineers :

- (3) The alterations of the junctions or connections and all works necessary or incident thereto shall be constructed only according to such plans as shall be approved as aforesaid and to the reasonable satisfaction of the principal engineer of the London Company and at the costs charges and expenses in all respects of the Company.

For
protection
of London
County
Council.

12. For the protection of the London County Council (in this section referred to as " the council ") the following provisions shall unless otherwise agreed have effect (that is to say) :—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans subsections (1) (3) (4) and (5) of section 36 of the Southern Railway Act 1924 are incorporated with and form part of this Act and shall extend and apply to the lands in the administrative county of London (in this section referred to as " the county ") which the Company are by this Act authorised to acquire or the purchase of which is confirmed thereby and to any works matters or things by this Act authorised in the county as fully and effectually to all intents and purposes as if those provisions had been repeated and expressly re-enacted in this Act with reference thereto :

- (2) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not enter upon take use or interfere with—

(a) Any part of Ladywell recreation ground situate on the western side of their existing railways; or

(b) The footpaths in the metropolitan borough of Lewisham numbered 4 and 21 on the deposited plans (except for the purpose of carrying Widening (No. 3) thereover by means of bridges); or

(c) The River Ravensbourne (except for the purpose of carrying Widenings (Nos. 3 and 4) thereover by means of bridges); or

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(d) Any part of the Bellingham Estate of the council;

except with the consent of the council and on such terms and conditions as the council may impose. As soon as reasonably practicable the Company shall restore the surface of any part of Ladywell recreation ground interfered with by the construction of Widening (No. 3) to its original condition (so far as it is reasonably practicable so to do) such restoration to be to the reasonable satisfaction of the council:

- (3) (a) The Company shall not commence any works under the powers of this Act which shall or may pass over under or by the side of or so as to interfere with any sewers of the council until they have given to the council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the council with plans and sections thereof as in this subsection defined and until the council have signified their approval of the same unless the council do not signify their approval disapproval or other directions within twenty-eight days after service of the said plans and sections as aforesaid and the Company shall comply with and conform to all reasonable orders directions and regulations of the council in the execution of the said works and shall provide by new altered or substituted works in such manner as the council reasonably require for the proper protection of and for preventing injury or impediment to the said sewers by reason of the intended works or any part thereof and shall save harmless the council against all expenses to be occasioned thereby and all such works shall be done by or under the direction superintendence and control of the council at the costs charges and expenses in all respects of the Company and all reasonable costs charges and expenses which the council

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may be put to by reason of such works of the Company whether in the execution of works the preparation or examination of plans or designs superintendence or otherwise shall be paid to the council by the Company on demand and when any new altered or substituted works as aforesaid or any works of defence connected therewith shall be completed by or at the costs charges or expenses of the Company under the provisions of this Act the same shall thereafter be as fully and completely under the direction jurisdiction and control of the council as any sewers or works of the council now or hereafter may be;

(b) As regards any works in respect of which the Company are under the provisions of this subsection required to submit plans and sections to the council the council may require the Company in constructing such works to make any reasonable deviation within the limits prescribed by this Act from the line or levels shown upon such plans or sections for the purpose of avoiding injury or risk of injury to the sewers of the council and the Company shall in constructing such works deviate accordingly;

(c) The plans and sections to be submitted to the council under the provisions of this subsection shall be detailed plans drawings sections and specifications describing the exact position and manner in which and the levels at which the works are proposed to be constructed and shall accurately describe the position of all sewers of the council within the limits of deviation shown on the deposited plans (for which purpose the council shall allow the Company access to plans in their possession and to any of their sewers in order to enable the Company to obtain trustworthy information) and shall comprise detailed drawings of any alteration which the Company may propose to make in the said sewers;

(d) The council may require such modification to be made in the said plans drawings sections and specifications as may be reasonably

necessary to secure the London main drainage system under the jurisdiction and control of the council against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers; A.D. 1926.
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(e) The Company shall be liable to make good all injury or damage caused by or resulting from any of their works or operations under the powers of this Act to any sewers drains or works vested in the council and the council shall from time to time have power to recover the amount thereof from the Company in any court of competent jurisdiction;

(f) The approval by the council of any plans or superintendence by the council of any work under the provisions of this subsection shall not exonerate the Company from any liability or affect any claim for damages under this subsection or otherwise:

(4) Notwithstanding anything contained in this Act or shown on the deposited plans it shall not be lawful in the county for the Company without the consent of the council to encroach on any part of the surface of any street or footway or to erect any building or structure in such manner that any external wall thereof or the external fence or boundary of any forecourt or space in front thereof shall be within the distances hereinafter prescribed from the centre of the roadway of any street or way (being a highway) upon which the same will abut that is to say where such street or way is used for the purposes of carriage traffic twenty feet and where such street or way is used solely for the purposes of foot traffic ten feet:

(5) Notwithstanding anything contained in this Act or shown on the deposited plans it shall not be lawful in the county for the Company without the consent of the council to erect or maintain any building or structure beyond the general line of building in any street part of a street place or row of houses:

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- (6) If the Company shall under the powers of this Act break up or in any way interfere with the surface of any street in proximity to the tramways of the council they shall cause any such works of breaking up or interference and any structures erected in connection therewith to be adequately illuminated at night and at all other reasonable times :
- (7) The Company shall carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the execution of the works by this Act authorised within the county and subject to the rights of the Crown and except so far as the same shall be proved to be the property of any other person any such objects shall be subject to the disposal of the council in such manner as the council may from time to time resolve and the Company shall use all reasonable means for securing compliance with the provisions of this subsection :
- (8) If any difference shall arise between the council and the Company under the provisions of this section other than subsection (1) thereof (so far as it incorporates subsection (1) of section 36 of the Southern Railway Act 1924) and subsections (3) (4) and (5) thereof the same shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

Construc-
tion &c. of
bridges in
county of
London.

13.—(1) The Company shall in constructing the railways and the widenings in the administrative county of London over the streets next hereinafter mentioned construct and thereafter maintain the bridges and works to carry the railways and the widenings as girder bridges which shall have a clear headway throughout above the existing surface of the street and a clear span throughout measured on the square of not less than the headways and spans hereinafter mentioned (that is to say):—

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(5) (a) Before commencing the construction of Widening (No. 3) the Company shall give three months' notice in writing to the London County Council (in this section referred to as "the council") of their intention so to do and if within that period the council by notice in writing require the Company to reconstruct the bridge carrying the existing railway of the Company over Catford Hill to a clear width throughout of 60 feet between the abutments thereof the Company shall comply with such requirement. The council shall after the completion of the reconstruction of such bridge pay to the Company on demand the cost incurred by them in connection therewith and the Company shall maintain the bridge as so reconstructed.

(b) Such bridge shall be reconstructed according to the lines indicated in red on the signed plan marked C hereinafter defined in this section and the Company shall without requiring payment therefor add to Catford Hill so as to increase the present width thereof the land shown by red colour on the said plan. If the council by notice in writing so require the Company shall sell to the council the land shown by blue colour on the said plan marked C on terms which (failing agreement) shall be determined by an arbitrator to be agreed between the parties or failing agreement to be appointed on the application of either party by the President of the Surveyors' Institution and the land so sold to the council shall be used for the purpose of increasing the present width of Catford Hill. The said works shall be so constructed and maintained as not to alter the existing levels of the said street.

(c) If at any time hereafter the council by notice in writing require the Company to reconstruct the bridge carrying the existing railway of the Company over Ravensbourne Park to a clear width throughout of 60 feet between the abutments thereof (such reconstructed bridge to be without intermediate columns if so required by the council) the Company shall comply with such requirements and the Company shall without requiring payment therefor add to Ravensbourne Park so as to increase the present width thereof the land shown by red colour on the said plan marked C. The council shall after the completion of the reconstruction of such bridge pay to the Company on demand the cost incurred by them in connection with such reconstruction and the Company shall maintain the bridge as so reconstructed.

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(7) The construction of the bridges for carrying the streets or occupation roads next hereinafter mentioned over the railways and the widenings and the works connected therewith shall be executed so as to provide a clear width throughout such streets or occupation roads between the parapets measured on the square of not less than the widths hereinafter mentioned (that is to say) :—

Metropolitan Borough.	Situation of Bridge.	Square width of Bridge between parapets.
		ft. in.
Lewisham	Dalrymple Road - - - -	40 0
"	Brockley Road - - - -	50 0
"	Brockley Grove - - - -	40 0
"	Randlesdown Road - - - -	50 0
"	Occupation road 7 furlongs 2 chains from commencement of Widening (No. 4) - - - -	15 0
"	Southend Lane - - - -	50 0
"	Beckenham Lane - - - -	50 0
"	Occupation road 1 mile 4 furlongs 1.5 chains from commencement of Widening (No. 4) - - - -	45 0
"	Crab Hill - - - -	45 0

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(8) (a) Before commencing the construction of Widening (No. 2) the Company shall give three months' notice in writing to the council of their intention so to do and if within that period the council by notice in writing require the Company to alter and construct the bridge carrying Brockley Road over the existing railway of the Company and over Widening (No. 2) so as to provide throughout such road between the parapets measured on the square a width of 67 feet and to strengthen the structure of the existing bridge (other than the portion of such structure under the tramways of the council) the Company shall comply with such requirements and the council shall after the completion of such works pay to the Company on demand the sum of two thousand eight hundred pounds as a contribution towards the cost thereof.

(b) Before commencing the construction of Widening (No. 4) the Company shall give three months' notice in writing to the council of their intention so to do and if within that period the council by notice in writing require the Company to alter and construct either of the bridges carrying Southend Lane and Beckenham Lane over the existing railways of the Company and over Widening (No. 4) so as to provide throughout such streets between the parapets measured on the square a width of 60 feet in each case the Company shall comply with such requirements and the council shall after the completion of the alteration or construction of such bridges or either of them pay to the Company on demand the additional cost incurred by them in connection therewith.

(c) If and when the Company under the powers of this Act alter and construct the bridges referred to in this subsection then upon the completion of such alteration and construction the Company shall without requiring payment therefor add to Brockley Road Southend Lane and Beckenham Lane respectively so as to increase the present width thereof the lands shown by red colour on the signed plans marked B D and E respectively hereinafter defined in this section. If the council by notice in writing so require the Company shall sell to the council so much of the lands coloured blue on the said plans marked D and E as belong to the Company or may be acquired by them for the purposes of Widening

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(No. 4) on terms which (failing agreement) shall be determined by an arbitrator to be agreed between the parties or failing agreement to be appointed on the application of either party by the President of the Surveyors' Institution and any land so sold to the council shall be used for the purpose of increasing the present width of Southend Lane and Beckenham Lane respectively. Any land added to the street under the provisions of this subsection shall thereupon be paved or made up by the council as part of the cost of the improvement and be deemed to form part of the highway of the street to which the same has been added and shall be cleansed maintained repaired and lighted by the council of the metropolitan borough of Lewisham.

(d) Before commencing the construction of the bridge to carry the occupation road 7 furlongs 2 chains from the commencement of Widening (No. 4) over the said widening the Company shall give three months' notice in writing to the council of their intention so to do and if within that period the council by notice in writing require the Company to alter and construct the said bridge so as to provide throughout such road between the parapets measured on the square a width of 40 feet the Company shall comply with such requirement and the council shall after the completion of the works pay to the Company on demand the additional cost incurred by the Company in connection therewith.

(9) The Company shall not execute or commence to execute the construction reconstruction or alteration of any of the bridges hereinbefore in this section referred to or of the bridges over the footways numbered on the deposited plans 4 and 21 respectively in the metropolitan borough of Lewisham until they have given to the Council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the offices of the council with plans elevations sections and all other necessary particulars of the works and until the council have signified their approval of the same (unless the council fail to signify such approval or their disapproval or other directions within twenty-eight days after service of the said notice and delivery of the said plans elevations sections and other particulars as aforesaid) and the Company shall comply with and conform to all reasonable directions and regulations of the council

A.D. 1926. — in the construction reconstruction or alteration of such bridges and works and shall save harmless the council against all and every reasonable expense to be occasioned thereby and all such works shall be done to the reasonable satisfaction of the council at the costs charges and expenses in all respects of the Company and all costs charges and expenses to which the council may reasonably be put by reason of the construction of the said works the preparation or examination of plans and designs superintendence or otherwise shall be paid to the council by the Company on demand.

(10) The construction reconstruction or alteration of the bridges hereinbefore in this section referred to shall be so executed as not to alter the existing levels of any public street occupation road or footway thereunder or thereover.

(11) In this section "the signed plan marked A" "the signed plans marked B D and E" and "the signed plan marked C" mean the plans which are so marked and which have been signed in triplicate by the Right Honourable James Fitzalan Hope the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred whereof one copy has been deposited in the Committee and Private Bill Office of the House of Commons one copy at the Parliament Office of the House of Lords and one copy with the council.

(12) If any difference shall arise between the council and the Company under the provisions of this section the same shall except as in this section otherwise provided be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of
Metropoli-
tan Water
Board.

14. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall notwithstanding anything contained in this Act unless otherwise agreed in writing between the board and the Company have effect (that is to say) :—

(1) In this section the expression "the said works" means the railways and widenings of railways

in the metropolitan boroughs of Camberwell
Deptford and Lewisham and the urban district
of Beckenham by this Act authorised :

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(2) The Company shall construct the bridges or viaducts for carrying the said works over any road or street in which any main of the board is situate so that the abutments and piers thereof shall not encroach upon any part of the road or street and so that the foundations shall be carried down to a depth below the surface of the road or street to a level not higher than the lowest invert of any adjacent main or mains of the board. Provided that the Company shall construct any bridges or viaducts for carrying Railway (No. 1) Railway (No. 2) and Railway (No. 3) Widening (No. 3) Railway (No. 6) and Railway (No. 7) over any streets so that the foundations for the abutments and piers thereof shall be carried down to a depth below the surface of the said streets of not less than six feet :

(3) The Company shall in lengthening the bridges carrying any road or street over the said works at their own expense provide and thereafter maintain throughout the whole length of each of the said bridges and the extensions thereof and (so far as the approaches are altered by the construction of the said works) of the approaches thereto accommodation for the existing mains of the board and shall also provide and thereafter maintain throughout the whole length of each of the said bridges and extensions and the said approaches accommodation for an additional main or mains of a capacity equivalent to that of a 12-inch main which the board may hereafter desire to carry across the same :

The accommodation shall be provided and constructed in accordance with plans sections and particulars to be previously submitted to and reasonably approved by the board. Provided that if within one month after the receipt of any such plans sections and particulars the board shall not have intimated to the Company their disapproval thereof or made any require-

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ments with respect thereto they shall be deemed to have approved the same :

- (4) In the event of the Company interfering with the existing mains of the board they shall if required by the board and to their reasonable satisfaction substitute (but only to the extent to which such existing mains are interfered with) steel pipes of an internal diameter or capacity equal to the existing mains on and over the extended bridges superstructures and approaches for the existing mains of the board :
- (5) In executing the diversion of Copeland Road in the metropolitan borough of Camberwell the Company shall if necessary lay down and place mains pipes valves hydrants plugs or other works or apparatus (hereinafter in this section referred to as " apparatus ") in the new portion of road in substitution for the apparatus of the board laid in the portion of the road to be diverted and connect the same with the apparatus laid or placed in the said road at the commencement and termination of the diversion Provided that in carrying out such diversion the Company shall not remove the existing apparatus of the board until the new apparatus shall have been laid down and connected at each end with the existing apparatus ready for use and shall not cause any leakage from such existing apparatus or interrupt the supply of water by means thereof for any longer period than shall be actually necessary for the purpose of making the connections :

The Company shall on demand repay to the board the cost of providing such new apparatus and the costs charges and expenses incurred by the board in or in connection with the laying down or placing of the same and the formation of such connections :

- (6) Not less than twenty-eight days before commencing any of the said works in any street or road in or under which any apparatus of the board is situate the Company shall deliver to the board plans sections and descriptions of such works describing the proposed manner of

executing the same and showing the whole of the works proposed to be executed in connection therewith : A.D. 1926.

- (7) The board may at any time within twenty-eight days of the receipt of such plans sections and descriptions by notice in writing intimate to the Company their reasonable requirements so far as the said works may affect the board's apparatus and the board may require the Company to carry out their works in such a manner and of such materials as may be reasonably specified and to support the board's apparatus temporarily or otherwise by cement concrete or other like substance Provided that if the board shall not within the said period of twenty-eight days give any such notice in writing to the Company as aforesaid they shall be deemed to have no requirements to intimate to the Company :
- (8) The Company shall not construct such works as aforesaid except in accordance with the said plans sections and descriptions delivered to the board and shall carry out all works in connection with the board's apparatus as may be reasonably approved by the board or settled by arbitration :
- (9) Not less than twenty-eight days before commencing the construction of any of the said works as aforesaid the Company shall give to the board notice in writing of their intention to commence such construction and shall state in such notice the place and time at which they propose so to commence and if within seven days after the receipt of such notice the board shall give notice to the Company of their intention themselves to lay down any substituted apparatus or to execute any other works to or in connection with any apparatus as provided by this section it shall be lawful for the board instead of the Company to lay down such apparatus or execute such works and the cost reasonably incurred by them in so doing shall on demand be repaid to the board by the Company :

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- (10) The Company shall not raise sink or otherwise alter the position of any apparatus of the board or alter the level of any street road or footpath in which any such apparatus is situate so as to leave over such apparatus a covering of less than three feet where the covering now existing is not less than three feet or less than the existing covering where such existing covering is less than three feet unless the Company shall in each case protect such apparatus from frost or injury by artificial covering to the reasonable satisfaction of the board or more than five feet where the covering now existing does not exceed five feet or more than the existing covering where such existing covering exceeds five feet unless the Company in either of such last mentioned cases provide special means of access to the same to the reasonable satisfaction of the board :
- (11) It shall be lawful for the board their engineers workmen and others in their employ at all times when it may be necessary to enter upon any street road or footway temporarily stopped up by the Company at any point or place at which any apparatus of the board is situate and to do all such works in and upon such street road or footway as may be necessary for repairing maintaining removing or replacing or extending such apparatus :
- (12) The board may where reasonably necessary employ watchmen or inspectors to watch any of the said works to be executed by the Company whereby the board's apparatus will or may be interfered with or affected and the reasonable expenses thereof shall be borne by the Company :
- (13) The expenses of all repairs or renewals of the board's apparatus or any works in connection therewith which may at any time be rendered necessary by or in consequence of the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any or either of them in the execution of the said works or rendered necessary by reason of any subsidence resulting

from the said works whether during the construction of such works or at any time thereafter shall be borne by the Company :

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- (14) The provisions of this section shall be in addition to and not in substitution for or derogation of any other provisions of this Act to the benefit of which the board would otherwise have been entitled :
- (15) The Company shall not except with the consent of the board (which consent shall not be unreasonably withheld) execute or do any work which may involve any interference with the continuous supply of water by the board during the months of May June July August and September in any year :
- (16) If any difference shall arise between the board and the Company under this section (other than a difference as to the construction or meaning of the said section) the same shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

15. For the protection and benefit of the mayor aldermen and councillors of the metropolitan borough of Lewisham (in this section referred to as " the council ") the following provisions shall notwithstanding anything contained in this Act and except so far as may be otherwise agreed in writing between the Company and the council under their respective common seals apply and have effect (that is to say) :—

For protec-
tion of
Lewisham
Borough
Council.

- (1) The Company shall not acquire any part of the land numbered on the deposited plans 38 in the borough of Lewisham or any part of the land numbered on the said plans 37 in the said borough other than the part coloured red on the plan signed in duplicate by Alfred Weeks Szlumper on behalf of the Company and by William Farrer Owsley on behalf of the council and if the Company erect a retaining wall on the part of the land so acquired by them the

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Company shall maintain the retaining wall and the council shall be at liberty to make use thereof for the support of their premises. Provided that such user shall not impair the stability of the said retaining wall and the council shall afford to the Company access to the premises of the council for the purpose of maintaining the said wall:

- (2) When constructing the works authorised by this Act where the same will cross Southend Lane and Beckenham Lane the Company shall extend the sewer pipes of the council situate under the existing railway to the full extent of the works so constructed:
- (3) When constructing the works authorised by this Act over the sewer of the council situate under Railways (No. 2) and (No. 3) at approximately two furlongs three chains from the commencement of such railways the Company shall extend that sewer in a southerly direction so that it terminates at a point not less than ten feet from the south-west side of the railway boundary of the Company and shall to the reasonable satisfaction of the council build a manhole on the sewer in substitution for the manhole now at the head of such sewer:
- (4) When constructing Widening (No. 4) between Beckenham Hill Station and Bellingham Station the Company shall divert the surface water sewer of the council in a manner reasonably approved by the council so that no part thereof is beneath the railway except where such diverted sewer shall cross the railway:
- (5) The provisions of subsection (3) of the section of this Act whereof the marginal note is "For protection of London County Council" shall extend and apply for the protection of the council as if those provisions were repeated in this section with any necessary modifications and with the substitution of the words "the council's sewerage system" for "the London main drainage system":

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- (6) Any alteration of the River Ravensbourne effected under the powers contained in this Act and any bridges or culverts constructed by the Company in connection therewith shall be carried out in accordance with plans and sections previously submitted to and reasonably approved by the council and to their reasonable satisfaction and any such bridges and culverts shall be maintained by the Company to the like satisfaction :
- (7) If at any time hereafter the council by notice in writing require the Company to reconstruct the bridge carrying the existing railway of the Company over Thurston Road to a clear width throughout of fifty feet between the abutments thereof (such reconstructed bridge to be without intermediate columns if so required by the council) the Company shall comply with such requirement and the council shall after the completion of the reconstruction of such bridge pay to the Company on demand the cost incurred by them in connection with such reconstruction including the value of any land of the Company required for that purpose :
- (8) The Company shall not under the powers of this Act break up any street in the borough of Lewisham until they shall have given to the council one month's notice in writing of their intention to commence the intended works accompanied by plans sections and other necessary particulars showing the works proposed to be executed by the Company so far as they affect such street and such works shall be executed by the Company in accordance with plans sections and particulars reasonably approved by the council and to their reasonable satisfaction :
- (9) If any difference shall arise between the council and the Company under the provisions of this section the same shall be referred to and determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid

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the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of West
Kent Main
Sewerage
Board.

16. For the protection of the West Kent Main Sewerage Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the Company and the board apply and have effect (that is to say) :—

- (1) Where the Widening (No. 4) or other works to be executed under the powers of this Act are to be constructed over or across any sewer of the board the Company shall not reduce the discharging power of the sewer and shall so carry the railway over or across the sewer as not to injure the same by the working of the railway or to alter the level of the invert of the sewer or to reduce the internal height thereof to less than four feet six inches or to diminish its internal discharging capacity:
- (2) The Company shall not commence the said works until they shall have given to the board twenty-eight days' previous notice in writing of their intention so to do by leaving such notice at the principal office of the board with a plan section and other necessary particulars relating thereto and until the board shall have signified their approval of the same unless the board do not signify their approval disapproval or other directions within twenty-eight days after the leaving of such notice plan section and particulars as aforesaid :
- (3) In the execution of the said works the Company shall comply with and conform to all reasonable directions and regulations of the board and shall provide by new altered or substituted works in such manner as the board shall reasonably require for the proper protection of and for preventing injury or impediment to the sewer by reason of the said works of the Company or any part thereof and shall save harmless the board against all and every expense to be occasioned thereby :
- (4) All such new altered substituted or protective works as aforesaid shall be carried out by or

under the direction and superintendence (if the same be given) of the engineer of the board or his representative at the costs charges and expenses of the Company and all costs charges and expenses which the board may reasonably incur by reason of the works of the Company whether in the execution of works the preparation or examination of plans or designs superintendence or otherwise shall be paid to the board by the Company on demand:

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- (5) When any new altered substituted or protective works as aforesaid shall be completed under the provisions of this section the same shall thereafter be as fully and completely under the direction jurisdiction and control of the board as any of their sewers now or hereafter may be.

17. For the protection of the urban district council of Beckenham (in this section referred to as "the council") the following provisions shall unless otherwise agreed in writing between the council and the Company and notwithstanding anything contained in this Act or shown on the deposited plans and sections apply and have effect (that is to say):—

For protection of Beckenham Urban District Council.

- (1) In constructing the bridge to carry the road known as Downs Hill numbered on the deposited plans 4 in the urban district of Beckenham over the Widening (No. 5) and Railway (No. 4) authorised by this Act the Company shall construct the same of a width of not less than forty-five feet between the parapets:
- (2) Before executing any works by this Act authorised which may affect any electrical apparatus mains cables or other works (in this section referred to as "apparatus") of the council the Company shall give at least one month's notice in writing to the electrical engineer of the council and furnish him with plans of the proposed works so far as they are likely to affect such apparatus:
- (3) If the said electrical engineer reasonably considers that any protective works are required or that it is necessary that any apparatus should be removed altered or relaid or that

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any new or substituted apparatus should be laid in consequence of the said works of the Company the Company shall on demand repay to the council all expenses reasonably incurred by them in connection with such protective works or such removal alteration relaying provision or substitution of apparatus as aforesaid including the expenses reasonably incurred by the council of superintendence and supervision during the construction of the said works or in watching or otherwise in consequence or arising out of or in any way in connection with the execution by the Company of the works by this Act authorised :

- (4) Any difference or dispute which may arise between the council and the Company or their respective engineers under this section shall be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of cor-
poration of
London.

18. Notwithstanding anything in this Act contained the following provisions for the protection of the mayor and commonalty and citizens of the city of London trustees of the Bridge House Estates (hereinafter in this section referred to as "the corporation") shall unless otherwise agreed between the corporation and the Company have effect in regard to Railway (No. 8) (that is to say) :—

- (1) The Company shall not acquire any lands belonging to the corporation other than the lands coloured red and purple on the plan signed in triplicate by the Right Honourable James Fitzalan Hope the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred whereof one copy has been deposited in the Parliament Office of the House of Lords one in the Committee and Private Bill Office of the House of Commons and one with the town clerk of the city of London at his office :

- (2) In the event of the Company acquiring any of such lands as aforesaid the Company shall acquire the whole of the lands coloured purple on the said plan : A.D. 1926. —
- (3) The Company shall at their own expense so construct the eastern boundary of the embankment of Railway (No. 8) as to allow of the diversion of the River Ravensbourne from its present bed or course to a bed or course immediately adjoining such boundary and the Company shall not make any claim for compensation or otherwise in respect of such diversion.

19. For the protection of the wardens and assistants of Rochester Bridge (in this section referred to as "the bridge wardens") the following provisions shall unless otherwise agreed in writing between the Company and the bridge wardens apply and have effect in relation to Railway (No. 9) and the alteration of levels of the North Kent Line by this Act authorised (that is to say) :—

For protec-
tion of
Rochester
Bridge
Wardens.

- (1) The Company shall not commence any structural alterations or additions to the arches numbered on the deposited plans 5 to 10 in the city of Rochester until they shall have given to the bridge wardens twenty-one days' notice in writing of their intention to commence the same with proper plans and details showing the mode in which it is intended to construct the work and until the bridge wardens have signified their approval of the same. Provided that such approval shall not be unreasonably withheld and that if the bridge wardens shall fail to signify such approval or their disapproval within twenty-one days after service of the said notice and delivery of the said plans and details as aforesaid they shall be deemed to have approved thereof :
- (2) The Company shall comply with and conform to all reasonable directions of the bridge wardens in the execution maintenance and any necessary renewal or alteration of Railway (No. 9) and the said alteration of levels so far as the same affect Rochester Bridge or the property of the bridge wardens adjacent thereto :

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- (3) All reasonable costs charges and expenses to which the bridge wardens may be put in connection with the provisions for their protection in this section contained shall be paid to them by the Company on demand :
- (4) Any difference or dispute which may arise between the bridge wardens and the Company under this section shall be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec
tion of
Curtis's &
Harvey Ltd.

20. For the protection and benefit of Curtis's & Harvey Ltd. and their assigns (in this section referred to as "the owners") the following provisions shall notwithstanding anything contained in this Act or shown on the deposited plans and unless otherwise agreed in writing between the owners and the Company have effect with respect to the construction of Railway (No. 10) by this Act authorised and the exercise of the powers of this Act in relation thereto (that is to say) :—

- (1) The Company shall not construct Railway (No. 10) otherwise than in the position of the centre line shown in red on the plan signed in duplicate by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (in this section referred to as "the signed plan") one copy of which plan has been deposited in the Office of the Clerk of the Parliaments of the House of Lords and the other copy in the Committee and Private Bill Office of the House of Commons :
- (2) The Company shall not commence the construction of Railway (No. 10) unless and until such mounds and other protective works for and in connection with the magazine coloured red on the signed plan are constructed by and at the expense of the Company and to the reasonable satisfaction of the owners as are necessary to comply with the conditions of the licence granted in respect of such magazine by the Home Department in pursuance of the Explosives Act

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1875 and the regulations of the Home Department made under the said Act in relation to magazines having a capacity of not less than twenty-four thousand pounds of explosives and situate within the distance between the said magazine and the centre line of Railway (No. 10) shown in red on the signed plan. Provided that the owners may if they so desire themselves construct the said mounds and other protective works and the costs and expenses reasonably incurred by the owners in so doing shall upon demand be repaid to them by the Company :

- (3) The Company their contractors agents or workmen shall not during or after the construction of Railway (No. 10) or the works in connection therewith erect any building or do any act or thing on any land acquired by them for the purposes of such railway or works which will or may in any way prejudice or affect the conditions on which the said magazine is licensed or prevent the user of such magazine in all respects for the purposes for which it is now licensed under the aforesaid licence or which may in any way prejudice or affect the explosive licence or licences for the time being existing in respect of the owners' Tonbridge factory :
- (4) The Company their contractors agents or workmen shall not do any act or thing which will in any way prevent the owners using as a drying shed and reconditioning houses respectively the drying shed and two reconditioning houses coloured green on the signed plan unless and until the Company shall have provided at their own expense in all respects and to the reasonable satisfaction of the owners three buildings of equal value and of such character and capacity as the owners may reasonably require on sites to be provided by the owners for the purpose together with rails and other works (similar to those now existing in connection with the said drying and reconditioning houses) reasonably necessary for connecting the new buildings with

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the other buildings in the owners' Tonbridge factory :

- (5) The Company shall if required so to do by the owners acquire (in addition to the lands of the owners required for the construction of Railway (No. 10)) so much of the lands and streams coloured yellow and blue hatched blue respectively on the signed plan as belongs to the owners and as will lie or be on the eastern side of such railway when constructed and any dispute as to the price to be paid by the Company in respect of such acquisition shall be settled in the same manner as cases of disputed compensation under the Lands Clauses Acts as modified by this Act and the provisions of those Acts as so modified shall apply accordingly :
- (6) In constructing Railway (No. 10) the Company shall not enter upon any part of the streams belonging to the owners coloured blue hatched blue on the signed plan or take or use any of the waters thereof but the Company may acquire an easement or right over the said streams for the purpose of carrying the said railway thereover by means of a bridge or bridges :
- (7) The Company shall so construct and maintain Railway (No. 10) as not to impede or prejudicially affect the flow of the said streams :
- (8) The Company shall construct to the reasonable satisfaction of the owners a footpath of not less than five feet in width between the points marked A and B on the signed plan by the side of Railway (No. 10) with the necessary bridges (which may be constructed of wood with wooden handrails) over the streams to be crossed by the said footpath. Such footpath and bridges shall be maintained by the owners :
- (9) (a) The Company shall when constructing Railway (No. 10) over the electric cable situate in under or near the footpath on the property numbered on the deposited plans 7 in the parish of Tonbridge Rural lay at their own expense to the reasonable satisfaction of the owners a

stoneware pipe of not less than six inches in diameter to take the said cable under the said railway with manholes at either end of the said pipe and a joint-box in one of such manholes and the Company shall not execute any works over the said cable until it has been placed in the said pipe and properly connected;

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(b) The said pipe and manholes shall be maintained by the Company at their expense and the owners shall have full right and liberty at their own risk at reasonable hours in the daytime and at any time in case of emergency to enter on the property of the Company (if the said manholes or either of them be situate on the property of the Company) for the purpose of inspecting maintaining repairing or renewing the said cable and of laying an additional cable or additional cables through the said pipe;

(c) The costs and expenses reasonably incurred by the owners in connection with drawing the said cable through the said stoneware pipe including the cost of cutting and rejoining the said cable shall be borne and paid by the Company :

- (10) If the construction or maintenance of Railway (No. 10) or the works connected therewith interferes at any time with the water power derived from the said streams on the property numbered 7 as aforesaid and/or the supply of electricity by or through the said cable so as to hinder or stop the running of the Tonbridge factory of the owners the Company shall compensate the owners for all loss or damage occasioned to them thereby and shall fully and effectually indemnify the owners against all costs and expenses which they may incur in connection with any such loss or damage as aforesaid :
- (11) Any difference which shall arise between the Company and the owners under this section (other than subsections (5) (6) and (10) thereof) shall be referred to and settled by an engineer

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to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protection of
Tonbridge
Gas Com-
pany and
Tonbridge
Waterworks
Company
Limited.

21. For the protection of the Tonbridge Gas Company and the Tonbridge Waterworks Company Limited (in this section respectively referred to as "the undertakers") the following provisions shall notwithstanding anything in this Act contained and unless otherwise agreed in writing between the Company and the undertakers apply and have effect (that is to say):—

- (1) The provisions of subsections (1) to (5) and (7) to (14) of the section of this Act of which the marginal note is "For protection of Bournemouth Gas and Water Company" shall apply and have effect as if they were inserted in this section with the addition in subsection (2) thereof of the words "as the case may be" after the words "gas or water" and with the addition in subsection (12) thereof of the words "at their own risk" after the word "necessary" where it first occurs in that subsection:
- (2) Where any bridge carrying a road (in which any apparatus of the undertakers is now situate) over a railway is constructed or altered under the powers of this Act the Company shall provide such accommodation beneath the surface of the road or footpath thereof as may be reasonably necessary for carrying such apparatus over the railway or shall make such other provisions for such apparatus as may be reasonably required and in the case of the bridge carrying the public road numbered on the deposited plans of Railway (No. 10) 38 in the urban district of Tonbridge the accommodation shall be in the form of a channel or channels under the footpath of such road sufficient for a gas main and a water main of a diameter of not less than sixteen inches in each case the cover to such channel to be so constructed as to afford reasonably convenient access to such mains and the Company shall on demand repay to

the undertakers the reasonable cost of so carrying over the railway any apparatus of the undertakers existing at the passing of this Act. A.D. 1926.

22. For the protection of the Kent and East Sussex Light Railway Company (in this section referred to as "the light railway company") the following provisions shall unless otherwise agreed between the Company and the light railway company apply and have effect (that is to say) :—

For protec-
tion of Kent
and East
Sussex Light
Railway
Company.

(1) If in connection with the construction of Widening (No. 7) by this Act authorised the Company require to remove alter or interfere with any railways sidings buildings or works of the light railway company the Company shall at their own expense and before effecting such removal alteration or interference provide in substitution such lines of rails sidings buildings and works as shall afford to the light railway company accommodation and facilities reasonably equivalent to those now existing :

(2) Such substituted works shall be executed by the Company in accordance with plans sections and particulars submitted to and reasonably approved by the light railway company and in the event of such plans sections and particulars not being objected to by the light railway company within twenty-eight days from the receipt thereof they shall be deemed to have been approved by the light railway company :

(3) Any difference which shall arise under this section between the Company and the light railway company shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

23. For the protection of the Mid Kent Water Company the South Kent Water Company and the Mid Kent Gas Light and Coke Company (each of which is in this section respectively referred to as "the undertakers") the following provisions shall notwithstanding anything

For protec-
tion of Mid
Kent Water
Company
and other
companies.

A.D. 1926. in this Act contained and unless otherwise agreed in writing between the Company and the undertakers respectively apply and have effect (that is to say) :—

- (1) At least twenty-eight days before commencing any works by this Act authorised which may affect any mains pipes syphons tubes fittings or other apparatus (in this section referred to as “apparatus”) of the undertakers the Company shall deliver to the undertakers detailed plans sections and particulars of the works so proposed to be executed describing the proposed manner of executing the same and (except in the case of emergency) a notice stating the date when it is proposed to commence such works :
- (2) If it should appear to the undertakers that such work will interfere with endanger or render useless or partially useless any of their apparatus or impede the supply of water or gas (as the case may be) the undertakers may give notice to the Company to raise lower or otherwise alter the position of such apparatus or to support the same or to substitute temporarily or otherwise other apparatus or to lay additional new apparatus to connect up any apparatus or any part thereof rendered useless or partially useless by any such works of the Company in such manner as may be considered reasonably necessary and to lay or place under or over any apparatus cement concrete or other like substance and any difference as to the necessity of such lowering alteration support substitution laying or placing cement concrete or other like substance (in this section referred to as “protective works”) shall be settled as hereinafter provided and all such protective works shall save as hereinafter provided be done and executed by and at the reasonable expense of the Company but to the reasonable satisfaction and under the superintendence if such be given of the engineer of the undertakers :
- (3) If the undertakers by notice in writing to the Company within fourteen days after the receipt by them of notice of the intended commencement by the Company of any such works of the

A.D. 1926.

Company so require the undertakers may by their own engineer or workmen do and execute such protective works so far as they affect the apparatus of the undertakers and the Company shall on completion thereof pay to the undertakers the reasonable expenses incurred by them in the execution of such protective works. The Company shall afford to the undertakers all reasonable facilities for the purpose of enabling the undertakers to carry out any such protective works specified in such notice. Provided that if for twenty-eight days after any such notice is given to the Company by the undertakers the undertakers neglect to proceed with all practicable diligence to carry out such protective works the Company may forthwith proceed with the works by this Act authorised as if such notice had not been given to them :

- (4) In the event of such plans sections and particulars so delivered to the undertakers as aforesaid not being objected to within twenty-eight days from the receipt thereof they shall be deemed to have been approved by the undertakers. The works to which the said plans sections and particulars respectively relate shall not be executed except in strict accordance therewith as approved by the undertakers or as determined by arbitration as hereinafter provided :
- (5) The Company shall not raise sink or otherwise alter the position of any apparatus of the undertakers or alter the level of any street road or other place in which any such apparatus is situate so as to leave over such apparatus a covering of less than three feet where the covering now existing is not less than three feet unless the Company shall in such case protect such apparatus from frost or injury by artificial covering to the reasonable satisfaction of the undertakers or more than five feet where the covering now existing does not exceed five feet or more than the existing covering where such existing covering exceeds five feet unless the Company in either of such last mentioned cases provide special means of access to the

A.D. 1926.

same to the reasonable satisfaction of the engineer of the undertakers :

- (6) The undertakers may where reasonably necessary employ watchmen or inspectors to watch and inspect any works by this Act authorised whereby any apparatus of the undertakers may be interfered with or affected during construction repair or renewal of any such works and the reasonable wages of such watchmen or inspectors shall be borne by the Company :
- (7) The Company shall pay to the undertakers the reasonable cost of and incidental to the cutting off of any apparatus of the undertakers rendered derelict or unnecessary by the execution of any of the works by this Act authorised from any other apparatus of the undertakers and of and incidental to any other works or things rendered necessary in consequence of any such apparatus being rendered derelict or unnecessary :
- (8) The reasonable expense of all repairs or renewals of any apparatus of the undertakers or any works in connection therewith which may at any time hereafter be rendered necessary either by reason of the exercise by the Company of the powers conferred upon them by this Act or by the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any or either of them in the execution of the works by this Act authorised or rendered necessary by reason of any subsidence resulting from such works of the Company whether during the construction of the same or at any time thereafter shall be borne and paid by the Company :
- (9) The Company shall from time to time pay to the undertakers any additional expense which the undertakers may have to incur in effecting any repair renewal or extension of their existing apparatus by reason of the existence of any of the works by this Act authorised :
- (10) The Company in executing any works under this Act or in removing raising or otherwise

altering the position of any apparatus of the undertakers shall make good all damage done by them to the apparatus or other property of the undertakers : A.D. 1926.
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- (11) The Company shall make reasonable compensation to the undertakers for any loss or damage which they may sustain by reason of any interference with their apparatus or property under the powers of this Act or of the construction failure or user of the works by this Act authorised or by the exercise by the Company of the powers conferred upon them by this Act or by the act or default of the Company or of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them in the execution of the works by this Act authorised The Company shall also indemnify the undertakers in respect of any penalties costs actions claims or demands arising out of any interference by the Company with the apparatus or property of the undertakers :
- (12) It shall be lawful for the undertakers and the engineers workmen and others in their employ at all times when it may be necessary at their own risk to enter upon the lands works and premises of the Company at any point or place where there is existing apparatus of the undertakers and to do all such works in and upon such lands and premises as may be necessary for repairing maintaining or removing or replacing or extending such apparatus under or over the same lands and premises and notwithstanding the stopping up temporarily of any public street or place under the powers of this Act to exercise the same rights of access as they now enjoy to all or any apparatus of the undertakers situate in or under any such street or place Provided always that in so doing the undertakers their engineers or workmen or others in the employ of the undertakers shall not interrupt the user of any of the works of the Company by this Act or any other Act authorised Provided also that the undertakers shall make good and

.A.D. 1926.

reimburse to the Company all damages to such works occasioned by the exercise of the powers by this section reserved to the undertakers :

- (13) Where the Company shall under the powers of this Act divert any road or footpath in which any apparatus of the undertakers is or may be laid down or placed the undertakers may lay down or place new apparatus in the new portion of road or footpath and connect the same with the apparatus laid or placed in the said road or footpath at the commencement and termination of the diversion. The Company shall on demand repay to the undertakers the reasonable cost of providing such new apparatus and the costs charges and expenses reasonably incurred by the undertakers in or in connection with the laying down or placing of the same and the formation of such connections and thereupon the apparatus of the undertakers laid down or placed in the existing road or footpath between the commencement and the termination of the diversion thereof shall become the property of and vest in the Company. Provided that if the new apparatus so laid down or placed by the undertakers shall be of larger size than that of the existing apparatus in the diverted road or footpath the Company shall only be required to repay to the undertakers such proportion of the cost of providing and laying down or placing the new apparatus as shall represent the cost which would have been incurred by the undertakers in providing and laying down or placing apparatus of similar size to that of the said existing apparatus :
- (14) Any difference which shall arise under this section between the Company and the undertakers or their respective engineers shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration :

(15) Nothing in this section shall prejudice or affect the provisions of the following agreements (namely) :— A.D. 1926.

(i) An agreement dated the 8th day of March 1899 and made between the London Chatham and Dover and the South Eastern Railway Companies of the one part and the Mid Kent Water Company of the other part ;

(ii) An agreement dated the 20th day of June 1911 and made between the South Eastern Railway Company of the first part the South Eastern and Chatham Railway Companies' Managing Committee of the second part and the South Kent Water Company of the third part ;

(iii) An agreement dated the 16th day of January 1901 and made between the South Eastern Railway Company of the one part and the Mid Kent Gas Light and Coke Company of the other part ;

(iv) An agreement dated the 25th day of February 1907 and made between the South Eastern Railway Company of the first part the South Eastern and Chatham Railway Companies' Managing Committee of the second part and the Mid Kent Gas Light and Coke Company of the third part.

24.—(1) In addition to the provisions of the Acts incorporated herewith with respect to compensation for lands taken or injuriously affected the Company shall make compensation to the owner lessee and occupier of any land house or building which shall be injuriously affected by reason of the working of Railway (No. 13) where constructed in tunnel notwithstanding that no part of the property of such owner lessee or occupier is taken by the Company Provided that all claims for compensation under this section shall be made within two years from the date when Railway (No. 13) shall be first opened for public traffic and shall be settled by a single arbitrator under and subject to the provisions of the Arbitration Act 1889 save that where the parties do not concur in the appointment of an arbitrator the Minister

Compensation for damage by working of Railway (No. 13) in tunnel.

A.D. 1926. of Transport shall have the power of the court or a judge
— under section 5 of the said Act.

(2) An arbitrator under this section may with the consent of all parties concerned hear together any class or group of claims under this section.

For protec-
tion of
Brighton
Corporation.

25. For the protection of the mayor aldermen and burgesses of the borough of Brighton (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed in writing between the Company and the corporation apply and have effect (that is to say) :—

- (1) The section of this Act of which the marginal note is "Compensation for damage by working of Railway (No. 13) in tunnel" shall extend and apply for the protection of the corporation and shall have effect with reference to the corporation as though the term "building" in that section included any highway tramway sewer main pipe cable or line for the supply of water or electricity belonging to or maintained by the corporation :
- (2) Notwithstanding anything in this Act or shown on the deposited plans the Company shall not enter upon or acquire any part of the property numbered on the deposited plans 2 in the parish of Preston Rural nor any part of the property numbered on the deposited plans 3 in the said parish other than the area coloured pink on the plan signed in duplicate by Alfred Weeks Szlumper on behalf of the Company and James Herbert Rothwell on behalf of the corporation :
- (3) If the Company desire to enter upon or acquire the said area coloured pink or any part thereof they shall serve notice to treat in respect thereof and the provisions of the Lands Clauses Acts shall apply accordingly but the said area or part thereof so acquired shall be used by the Company only for the purposes of the cutting in which Railway (No. 13) and the alteration of the Preston Park and Hove spur line by this Act authorised will be constructed.

26. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection and benefit of the mayor aldermen and burgesses of the borough of Bournemouth (in this section referred to as “the corporation”) shall unless otherwise agreed in writing between the corporation and the Company apply and have effect (that is to say) :—

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 For pro-
 tection
 of Bourne-
 mouth
 Corporation.

- (1) In this section “the signed plan marked A” “the signed plan marked B” and “the signed plan marked C” mean the plans which are so marked and which have been signed in duplicate by the Right Honourable the Earl of Donoughmore the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred whereof one copy has been deposited at the Parliament Office of the House of Lords and one copy in the Committee and Private Bill Office of the House of Commons :
- (2) In altering for the purposes of Widening (No. 9) the public carriage roads next hereinafter mentioned the Company may make the same of any inclinations not steeper than the inclinations hereinafter mentioned in connection therewith respectively (that is to say) :—

Name of Road.	Inclination.
Ashley Road	1 in 22·5
Gloucester Road	1 in 24·6

- (3) In constructing Widening (No. 9) the Company shall alter and construct the bridge carrying Ashley Road over the existing railway of the Company and over Widening (No. 9) so as to provide throughout such road between the parapets or fences measured on the square a width of forty feet and the Company shall at their own expense maintain the structure of the bridge as so altered and constructed The corporation shall at their own expense make up metal surface drain and channel the roadway and paved footpath on the altered portion of the bridge carrying such road over the existing railway of the Company and on the approaches

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to such bridge and the Company shall to the reasonable satisfaction of the corporation make up metal surface drain and channel the roadway and paved footpath on each side of the said roadway on the bridge (but not on the approaches thereto) to be constructed for carrying the said road over Widening (No. 9) and the corporation on the completion of the said works shall pay to the Company the sum of two thousand four hundred pounds. The Company shall without requiring payment therefor add to Ashley Road so as to increase the present width thereof the lands shown by red colour on the signed plan marked " A " and dedicate the same to the public and the corporation shall at their own expense so widen the said part of the said road and to the reasonable satisfaction of the Company set back the boundary walls and fences of the Company and construct any necessary retaining walls and make any other alterations rendered necessary in connection with the said widening of the said road :

- (4) Before commencing the construction of Widening (No. 9) the Company shall give three months' notice in writing to the corporation of their intention so to do and if within that period the corporation by notice in writing require the Company to alter and construct the bridges carrying Gloucester Road and Southbourne Road or either of those roads over the existing railway of the Company and over Widening (No. 9) so as to provide throughout such roads between the parapets or fences measured on the square a width of forty feet in the case of Gloucester Road and of thirty-two feet in the case of Southbourne Road the Company shall comply with such requirement and the Company shall at their own cost maintain the structure of any bridge so altered and constructed. The Company shall to the reasonable satisfaction of the corporation make up metal surface drain and channel the roadways and a paved footpath on each side of the said roadways and the corporation on the completion of the said works shall pay to the Company so much of the cost thereof as relates

to the alteration of the bridges (or either of them) carrying the said roads over the existing railway of the Company and of the roadways and foot-paths thereon and of the works in connection therewith : A.D. 1926.

- (5) In constructing Widening (No. 9) the Company shall alter the bridge carrying Christchurch Road over their existing railway so as to provide throughout such road between the parapets or fences measured on the square a width of forty-two feet and the Company shall at their own expense maintain the structure of the bridge as so altered. The corporation shall at their own expense make up metal surface drain and channel the roadway and paved footpath on the altered portion of the bridge carrying such road over the existing railway of the Company and the Corporation shall to the reasonable satisfaction of the corporation make up metal surface drain and channel the roadway and a paved footpath on each side of the said roadway on the bridge to be constructed for carrying the said road over Widening (No. 9) and the corporation on the completion of the said works shall pay to the Company the sum of two thousand seven hundred pounds :
- (6) Any areas added to Ashley Road Gloucester Road Christchurch Road and Southbourne Road respectively by reason of any alteration or construction as hereinbefore provided of the bridges carrying those roads over the existing railway of the Company and over Widening (No. 9) shall be dedicated to the public and shall be maintained lighted and cleansed by the corporation and the liability of the Company in respect of the maintenance of those roads shall not be enlarged or increased by or in consequence of any such addition alteration or construction :
- (7) Before commencing the construction of Widening (No. 10) the Company shall give three months' notice in writing to the corporation of their intention so to do and if within that period the

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corporation by notice in writing require the Company either—

(a) to reconstruct the bridge carrying the existing railway of the Company over Surrey Road South to a clear width throughout of thirty feet between the abutments thereof and with a clear headway above the existing surface of the road of not less than fourteen feet six inches and to construct the bridge for carrying Widening (No. 10) over the said road with a similar width and headway; or

(b) to construct a new bridge for carrying the said railway and Widening (No. 10) over the said road with a similar width and headway and in accordance with the signed plan marked "C"

the Company shall comply with such requirement and in either case the Company shall without requiring payment therefor add to Surrey Road South and dedicate to the public sufficient land of the Company to enable the corporation to increase the width of the said road to thirty feet under the said bridges or bridge as so reconstructed or constructed as the case may be ;

In the event of the corporation requiring the Company to carry out the works referred to in paragraph (a) of this subsection the corporation shall pay to the Company on the completion of such works the sum of nine thousand pounds and in the event of the corporation requiring the Company to carry out the works referred to in paragraph (b) of this subsection the corporation shall pay to the Company on the completion of such works the sum of eleven thousand pounds :

- (8) Before commencing the construction of Widening (No. 10) the Company shall give three months' notice in writing to the corporation of their intention so to do and if within that period the corporation by notice in writing require the Company either—

(a) to reconstruct the bridge carrying the existing railway of the Company over Prince

of Wales Road to a clear width throughout of thirty feet between the abutments thereof and with a clear headway over the existing surface of the road of not less than fourteen feet six inches and to construct the bridge for carrying Widening (No. 10) over the said road with a similar width and headway; or

(b) to construct a new bridge for carrying the said railway and Widening (No. 10) over the said road with a clear width of thirty-six feet between the abutments and a headway throughout of not less than fourteen feet six inches

the Company shall comply with such requirement and in either case the Company shall without requiring payment therefor add to Prince of Wales Road and dedicate to the public sufficient land of the Company to enable the corporation to increase the width of the said road to thirty feet or thirty-six feet (as the case may be) under the said bridges or bridge as so reconstructed or constructed;

In the event of the corporation requiring the Company to carry out the works referred to in paragraph (a) of this subsection the corporation shall pay to the Company on the completion of such works the sum of eight thousand seven hundred and fifty pounds and in the event of the corporation requiring the Company to carry out the works referred to in paragraph (b) of this subsection the corporation shall pay to the Company on the completion of such works the sum of sixteen thousand five hundred pounds;

In constructing the works referred to in this subsection the Company shall splay off the corner at the junction of Prince of Wales Road with Nelson Road to the reasonable satisfaction of the corporation and the corporation shall pay to the Company the sum of twenty-five pounds for the land of the Company required for that purpose:

- (9) The bridges referred to in subsections (7) and (8) of this section shall be reconstructed or constructed (as the case may be) and maintained

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so as to prevent as far as practicable the dripping of water therefrom :

- (10) In constructing Widening (No. 9) the Company shall divert Curzon Road and South Road and the public footpath leading from those roads to St. Clements Road in the manner shown upon the signed plan marked " B " and the corporation shall without requiring payment therefor convey their interest in the land numbered on the deposited plans 176 in the borough of Bournemouth to the Company. The corporation shall maintain the said roads as so diverted and the Company shall at their own cost construct and thereafter maintain the footbridge to carry the said footpath over the existing railway of the Company and over Widening (No. 9) as shown upon the said plan :
- (11) Not less than twenty-eight days before commencing any works authorised by this Act affecting any street or road or any tramway of the corporation or under over or within four yards of any sewer or drain of the corporation (in this section referred to as " the protected works ") the Company shall deliver to the corporation for their reasonable approval plans and sections of such works and particulars of the proposed manner of executing the same so far as they will affect such protected works and if at the expiration of twenty-one days from such delivery the corporation shall not have disapproved the said plans sections and particulars they shall be deemed to have approved thereof and if any difference shall arise concerning the said plans sections and particulars such difference shall unless otherwise agreed be determined by arbitration as in this section provided and any works of the Company authorised by this Act affecting the protected works shall be executed in accordance with the plans and sections so approved or settled as aforesaid :
- (12) The Company shall not unreasonably interrupt or interfere with the working of traffic on any tramway of the corporation and shall make all such temporary or other arrangements as may

be reasonably necessary for enabling the corporation to maintain a proper and sufficient service on such tramway and if the Company fail to comply with this provision the corporation may themselves make such arrangements and may recover from the Company any expenses reasonably incurred in so doing :

- (13) During the construction repair or renewal of any of the said works of the Company the corporation may employ such persons (if any) as may be reasonably necessary to superintend any of such works which will interfere with or affect the protected works and the reasonable expense incurred by the corporation in so doing shall be repaid to them by the Company :
- (14) If any injury to any of the protected works or if any interruption in the traffic on the tramways of the corporation shall be occasioned by the said works of the Company either by reason of the exercise of the powers conferred upon the Company by this Act or by the act or default of the Company or of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them the Company shall make good to the corporation any loss damage or expense which may be occasioned to them by reason of such injury interruption act or default :
- (15) If the corporation by notice in writing to the Company within twenty-one days after the receipt by the corporation of notice of the intended commencement by the Company of any works authorised by this Act affecting the protected works or any of them so require the corporation may if reasonably necessary by their own surveyor workmen or contractors alter the position of any of the protected works or of any works connected therewith or support the same or substitute temporarily or otherwise other works and lay or place under the protected works cement concrete or other like substance and the Company shall on completion of any such works pay to the corporation the reasonable expenses incurred by them in connection therewith :

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(16) The works authorised by this Act and any works of maintenance alteration or renewal thereof shall be executed so as not unreasonably to interrupt impede or interfere with the traffic over or along any highway vested in or repairable by the corporation :

(17) Any difference which may arise between the Company and the corporation under the foregoing provisions of this section shall be referred to and settled by a single arbitrator to be appointed upon the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration :

(18) (a) The Company shall not for the purposes of Widening (No. 9) enter upon take or use the lands or property of the corporation numbered on the deposited plans 222 in the borough of Bournemouth (being the Gloucester Road stone depôt of the corporation) unless and until a site for accommodation reasonably equivalent to that now existing at the said depôt is available for the corporation ;

(b) The Company shall not for the purposes of Widening (No. 10) enter upon take or use the lands or property of the corporation numbered on the deposited plans 9 10 and 14 in the borough of Bournemouth (being the Wharf Road depôts of the corporation) unless and until a site or sites for accommodation reasonably equivalent to that now existing at the said depôts is available for the corporation ;

(c) Any difference which may arise between the Company and the corporation under this subsection shall be referred to and settled by a surveyor to be appointed upon the application of either party by the President of the Surveyors' Institution and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of
Madeleine
Bodkin and
others.

27. Notwithstanding anything in this Act contained or shown upon the deposited plans and sections the Company shall not unless otherwise agreed in writing with Madeleine Bodkin Leopoldina Keppel Maud Monahan

and Gertrude Bodkin or other the owner or owners for the time being of the Convent of the Sacred Heart Brighton enter upon take or use any of the lands numbered on the deposited plans 4 4A 4B 4C and 4D in the parish of Preston Rural other than those coloured red upon the plan signed by Alfred Weeks Szlumper on behalf of the Company and by Leopoldina Keppel and Maud Monahan on behalf of the said Madeleine Bodkin and others.

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28. Nothing in this Act contained authorises the Company:—

For protection of War Department.

- (1) to take enter upon use or interfere with any land soil or water or any right in respect thereof for the time being vested in or in the occupation of or exercised or exerciseable by His Majesty's Principal Secretary of State for the War Department (in this section referred to as "the Secretary of State") or in of or by any other person body or corporation acting for or on behalf of the Secretary of State without his consent signified in writing under his hand which consent he is authorised to give subject to such special or other conditions as he shall see fit to impose on the Company; or
- (2) to take away lessen prejudice or alter any rights privileges or powers vested in or exercised or exerciseable by the Secretary of State without such consent as aforesaid.

29. For the protection of the Bournemouth Gas and Water Company (in this section referred to as "the undertakers") the following provisions shall notwithstanding anything in this Act contained and unless otherwise agreed in writing between the Company and the undertakers apply and have effect (that is to say):—

For protection of Bournemouth Gas and Water Company.

- (1) At least twenty-eight days before commencing any works by this Act authorised which may affect any mains pipes syphons tubes fittings or other apparatus (in this section referred to as "apparatus") of the undertakers the Company shall deliver to the undertakers plans sections and particulars of the works so proposed to be executed describing the proposed manner of executing the same and (except in

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the case of emergency) a notice stating the date when it is proposed to commence such works :

- (2) If it should appear to the undertakers that such works will interfere with endanger or render useless or partially useless any of their apparatus or impede the supply of gas or water the undertakers may give notice to the Company to raise lower or otherwise alter the position of such apparatus or to support the same or to substitute temporarily or otherwise other apparatus or to lay additional new apparatus to connect up any apparatus or any part thereof rendered useless or partially useless by any such works of the Company in such manner as may be reasonably necessary and to lay or place under or over any apparatus cement concrete or other like substance and any difference as to the necessity of such lowering alteration support substitution laying or placing cement concrete or other like substance (in this section referred to as "protective works") shall be settled as hereinafter provided and all such protective works shall save as hereinafter provided be done and executed by and at the expense of the Company but to the reasonable satisfaction and under the superintendence if such be given of the engineer of the undertakers :
- (3) If the undertakers by notice in writing to the Company within fourteen days after the receipt by them of notice of the intended commencement by the Company of any such works of the Company so require the undertakers may by their own engineer or workmen do and execute such protective works so far as they affect the apparatus of the undertakers and the Company shall on completion thereof pay to the undertakers the reasonable expenses incurred by them in the execution of such protective works The Company shall afford to the undertakers all reasonable facilities for the purpose of enabling the undertakers to carry out any such protective works specified in such notice Provided that if for twenty-eight days after any such notice is given to the Company by the undertakers the

A.D. 1926.

undertakers neglect to proceed with all practicable diligence to carry out such protective works the Company may forthwith proceed with the works by this Act authorised as if such notice had not been given to them:

- (4) In the event of such plans sections and particulars so delivered to the undertakers as aforesaid not being objected to within twenty-eight days from the receipt thereof they shall be deemed to have been approved by the undertakers. The works to which the said plans sections and particulars respectively relate shall not be executed except in accordance therewith as approved by the undertakers or as determined by arbitration as hereinafter provided:
- (5) The Company shall not raise sink or otherwise alter the position of any apparatus of the undertakers or alter the level of any street road or other place in which any such apparatus is situate so as to leave over such apparatus a covering of less than three feet where the covering now existing is not less than three feet unless the Company shall in such case protect such apparatus from frost or injury by artificial covering to the reasonable satisfaction of the undertakers or more than five feet where the covering now existing does not exceed five feet or more than the existing covering where such existing covering exceeds five feet unless the Company in either of such last mentioned cases provide special means of access to the same to the reasonable satisfaction of the engineer of the undertakers:
- (6) Where any bridge carrying a road over a railway is constructed or altered under the powers of this Act the Company shall provide such accommodation beneath the surface of the road or footpath thereof as may be reasonably necessary for carrying such apparatus over the railway or shall make such other provisions for carrying and protecting such apparatus as may be reasonably required and the Company shall on demand repay to the undertakers the reasonable cost of so carrying over the railway any

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apparatus of the undertakers existing at the passing of this Act :

- (7) The undertakers may where reasonably necessary employ watchmen or inspectors to watch and inspect any works by this Act authorised whereby any apparatus of the undertakers may be interfered with or affected during construction repair or renewal of any such works and the reasonable wages of such watchmen or inspectors shall be borne by the Company :
- (8) The Company shall pay to the undertakers the reasonable cost of and incidental to the cutting off of any apparatus of the undertakers rendered derelict or unnecessary by the execution of any of the works by this Act authorised from any other apparatus of the undertakers and of and incidental to any other works or things rendered necessary in consequence of such apparatus being rendered derelict or unnecessary :
- (9) The reasonable expense of all repairs or renewals of any apparatus of the undertakers or any works in connection therewith which may at any time hereafter be rendered necessary either by reason of the exercise by the Company of the powers conferred upon them by this Act or by the acts or defaults of the Company their contractors agents workmen or servants or any person in the employ of them or any or either of them in the execution of the works by this Act authorised or rendered necessary by reason of any subsidence resulting from such works of the Company whether during the construction of the same or at any time thereafter shall be borne and paid by the Company :
- (10) The Company in executing any works under this Act or in removing raising or otherwise altering the position of any apparatus of the undertakers shall make good all damage done by them to the apparatus or other property of the undertakers :
- (11) The Company shall make reasonable compensation to the undertakers for any loss or damage which they may sustain by reason of any

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interference with their apparatus or property under the powers of this Act or of the construction failure or user of the works by this Act authorised or by the exercise by the Company of the powers conferred upon them by this Act or by the act or default of the Company or of any of their contractors agents workmen or servants or any person in the employ of them or any or either of them in the execution of the works by this Act authorised The Company shall also indemnify the undertakers in respect of any penalties costs actions claims or demands arising out of any interference by the Company with the apparatus or property of the undertakers :

- (12) It shall be lawful for the undertakers and the engineers workmen and others in their employ at all times when it may be necessary to enter upon the lands works and premises of the Company at any point or place where there is existing apparatus of the undertakers and to do all such works in and upon such lands and premises as may be necessary for repairing maintaining or removing or replacing or extending such apparatus under or over the same lands and premises and notwithstanding the stopping up temporarily of any public street or place under the powers of this Act to exercise the same rights of access as they now enjoy to all or any apparatus of the undertakers situate in or under any such street or place Provided always that in so doing the undertakers their engineers or workmen or others in the employ of the undertakers shall not interrupt the user of any of the works of the Company by this Act or any other Act authorised Provided also that the undertakers shall make good and reimburse to the Company all damages to such works occasioned by the exercise of the powers by this section reserved to the undertakers :

- (13) Where the Company shall under the powers of this Act divert any road or footpath in which any apparatus of the undertakers is or may be laid down or placed the undertakers may lay

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—

down or place new apparatus in the new portion of road or footpath and connect the same with the apparatus laid or placed in the said road or footpath at the commencement and termination of the diversion;

The Company shall on demand repay to the undertakers the reasonable cost of providing such new apparatus and the costs charges and expenses reasonably incurred by the undertakers in or in connection with the laying down or placing of the same and the formation of such connections and thereupon the apparatus of the undertakers laid down or placed in the existing road or footpath between the commencement and the termination of the diversion thereof shall become the property of and vest in the Company. Provided that if the new apparatus so laid down or placed by the undertakers shall be of larger size than that of the existing apparatus in the diverted road or footpath the Company shall only be required to repay to the undertakers such proportion of the cost of providing and laying down or placing the new apparatus as shall represent the cost which would have been incurred by the undertakers in providing and laying down or placing apparatus of similar size to that of the said existing apparatus :

- (14) Any difference which shall arise under this section between the Company and the undertakers or their respective engineers shall be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Power to
Company
to make
further
works &c.

30. Subject to the provisions of this Act the Company may make (and in so far as the same are shown on the deposited plans and sections in the lines and according to the levels so shown) the works hereinafter described with all necessary works and conveniences connected therewith and may exercise the powers hereinafter men-

tioned and may enter upon take and use the lands delineated upon the deposited plans and described in the deposited book of reference relating thereto (that is to say) :—

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—

The Company may widen in the city of Rochester in the county of Kent on its north-west side the bridge carrying the North Kent Railway over the public footpath at the north-eastern end of Strood Station.

The Company may stop up and cause to be discontinued in the parish of Capel in the county of Surrey so much of the footpath crossing the Dorking and Horsham Railway on the level at Bregells Farm as extends between the south side of the railway and a point 40 yards north thereof and may divert the same in an easterly direction along the south side of and across the said railway on the level to the said point.

The Company may stop up and cause to be discontinued in the urban district of Haywards Heath in the county of East Sussex so much of Station Road as lies to the west of a point in that road 40 yards west of Perrymount Road.

In constructing the New Roads (Nos. 1 and 2) in the parishes of Eling and Millbrook in the county of Southampton authorised by the Southern Railway Act 1923 the Company may alter the levels of the portion of New Road (No. 1) as authorised by the said Act between the commencement of the said New Road (No. 1) and the east side of the Southampton and Romsey Railway and may alter throughout the levels of the New Road (No. 2) as authorised by the said Act and may substitute (a) a three-span bridge for a single arch bridge to carry the said New Road (No. 1) over the western channel of the river Test and (b) a three-arch bridge for two single arch bridges to carry the said New Road (No. 1) over the eastern channel of the river Test and the said railway.

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—
Incorporation and application of certain provisions of Southern Railway Act 1923.

31.—(1) The following provisions of the Southern Railway Act 1923 shall extend and apply in relation to the alteration of roads at Totton by this Act authorised as if the said sections were re-enacted in this Act with reference thereto (that is to say):—

Section 9 (Works below high-water mark to be subject to approval of Board of Trade);

Section 10 (Survey of works by Board of Trade);

Section 11 (Abatement of work abandoned or decayed);

Section 12 (Lights on works during construction);

Section 13 (Permanent lights on works); and

Section 14 (Provision against danger to navigation).

(2) In construing the following sections of the Southern Railway Act 1923 any reference therein to the New Road (No. 1) or the New Road (No. 2) by that Act authorised shall be deemed to refer to the said new roads as authorised to be altered by this Act (that is to say):—

Section 23 (Agreements with Southampton County Council);

Section 24 (Alteration of position of water and gas pipes);

Section 25 (For protection of Southampton County Council);

Section 26 (For protection of Southampton Corporation); and

Section 27 (For protection of Southampton Gaslight and Coke Company).

Power to deviate in construction of works.

32. In constructing the works by this Act authorised the Company may deviate laterally from the lines of any of the said works shown on the deposited plans thereof to the extent of the limits of deviation marked thereon and may deviate from the levels of the railways and widenings shown on the deposited sections thereof in accordance with the provisions of the Railways Clauses Consolidation Act 1845 and may deviate from the levels of any of the said works (other than the railways and widenings) shown on the deposited sections

thereof to any extent not exceeding five feet upwards or downwards Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade. A.D. 1926.

33. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of such works it may be necessary to underpin or otherwise strengthen the same Therefore the Company at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

Under-
pinning of
houses near
works.

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened:
- (2) Each such notice if given by the Company shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company:
- (3) If any owner lessee or occupier of any such house or building or the Company as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes or dispute the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference appointed at the instance of either party by the Minister of Transport and the Arbitration Act 1889 shall apply to the reference:
- (4) The arbitrator shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding

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that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building:

- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers granted by this section:
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against any further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of the requirements of and in the mode prescribed by the arbitrator the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:
- (7) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this section shall subject to the provisions of this Act be ascertained according to the provisions of the Lands Clauses Acts:
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

A.D. 1926. as a road so much of the road numbered on the deposited plans of Railway (No. 11) 9 in the parish of Ruckinge as extends between the points marked A and B on the said plans.

Power to
divert and
stop up
road and
footpaths.

38. The Company may divert the road and footpaths next hereinafter mentioned in the manner shown upon the deposited plans and sections and subject to the provisions of this Act may stop up and cause to be discontinued as a road or footpath so much of any existing road or footpath as will be rendered unnecessary by the new portion of road or footpath so shown on the said plans (that is to say):—

Work.	Area.	No. on deposited Plan.
Railway (No. 10) -	Parish of Tonbridge Rural	14.
	Urban district of Tonbridge	3 and 7.
Railway (No. 11) -	Parish of Mersham -	12 23 26 31 34 49 50 and 66.
Railways (Nos. 11 and 12).	Parish of Mersham -	73.
	Parish of Brabourne -	3 and 13.
	Parish of Smeeth -	1 4 5 and 6.
Widening (No. 7) -	Parish of Yalding -	1 and 43.
	Parish of Marden -	1 3 11 14 15 16 18 24 31 32 56 and 57.
	Parish of Staplehurst -	1 20 23 63 64 74 76 82 85 90 and 94.
	Parish of Headcorn -	1 82 and 83.
Widening (No. 9) -	County borough of Bourne- mouth.	166 167 and 168.

Repair of
roads where
level not
perman-
ently
altered.

39. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railways or the widenings or any of them by a bridge or bridges or the immediate approaches thereto except so far as the level of such road highway or approaches is permanently altered so as to increase the gradient Provided that nothing in this section shall relieve the Company from any liability which they were under immediately prior to the passing of this Act for the maintenance of the surface of any such highway or approach.

40. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may for any purposes connected with or ancillary to their undertaking enter upon take use and appropriate all or any of the lands hereinafter described or referred to and delineated on the deposited plans and described in the deposited book of reference relating thereto and in connection therewith the Company may exercise the powers hereinafter mentioned (that is to say) :—

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—
Power to
Company
to acquire
lands.

In the county of Kent—

Lands in the borough of Margate on the west side of Station Road and on the north side of and adjoining the goods shed at Margate West Station.

Lands in the borough of Deal on the west side of and adjoining Deal Station and extending for a distance of 250 yards north of London Road and in connection therewith the Company may stop up and cause to be discontinued the footpath situate between the said lands and the station premises and so much of Albert Avenue as lies to the east of a point 30 yards east of Albert Road and may make a new footpath from the said point to London Road.

In the county of East Sussex—

Lands in the urban district of Burgess Hill being the premises known as Nos. 1 and 2 Arundel Villas Junction Road.

Lands in the parish of Balcombe lying to the west of Balcombe Station and between the road leading from St. Mary's Church to Brook Cottage and the stream 50 yards west of that road.

Lands in the parishes of Cuckfield Rural and Ardingly on the east side of and adjoining the main line from London to Brighton and extending for a distance of 200 yards north and 220 yards south of Borde Hill Lane.

Lands in the urban district of Haywards Heath on the east side of and adjoining the

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said line at the back of the premises known as Shortfield and Heathfield Perrymount Road.

In the county of Southampton—

Lands in the county borough of Southampton on the east side of and adjoining the London and Southampton Railway and extending (a) for a distance of 227 yards north of Swaythling Road and (b) for a distance of 213 yards north of Woodmill Bridge.

Lands in the county borough of Southampton on the west side of and adjoining the London and Southampton Railway being (a) portions of the premises known as Nos. 46 to 76 (even numbers) Osborne Road and (b) portion of the premises known as No. 16 Osborne Road.

Lands in the county borough of Bournemouth lying between the Ringwood Christchurch and Bournemouth Railway and Seafeld Road and extending between Cranleigh Road and Lingdale Road on the south-west and Iford Lane on the east.

Lands in the county borough of Bournemouth on the south side of Pokesdown Station and lying between that station and Christchurch Road.

In the county of Dorset—

Lands in the borough of Poole on the south side of and adjoining the Poole and Bournemouth Railway extending from the west end of Parkstone Station to a point 350 yards south-west thereof.

In the county of Devon—

Lands in the parish of Shute (a) on the north side of and adjoining the main line from Yeovil to Exeter and extending for a distance of 70 yards east of the bridge carrying that line over Lexhayne Lane near Seaton Junction Station and (b) on the west side of and adjoining the Seaton Branch near its junction with the said main line extending between points respectively 33 yards north

and 73 yards south of the public footpath leading to Lexhayne Mill and in connection therewith the Company may stop up and cause to be discontinued so much of the said footpath as lies between Shute Road and the south-west side of the said Seaton Branch and may substitute a new footpath and footbridge therefor.

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41. The powers granted by this Act for the compulsory purchase of lands shall cease on the first day of October one thousand nine hundred and twenty-nine.

Period for compulsory purchase of lands.

42. Where this Act authorises the stopping up of a road or footpath or portion thereof without providing a substitute such stopping up shall not take place except where the same is situate upon property of the Company without the consent of the owners lessees and occupiers of the houses and lands on both sides thereof and from and after such stopping up all rights of way over or along the road or footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway appropriate and use for the purposes of their undertaking the site of the road or footpath or portion thereof so stopped up :

Stopping up roads and footpaths without providing substitute.

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

43. Where this Act authorises the diversion of a road or footpath or the making of a new road or footpath and the stopping up of an existing road or footpath or portion thereof such stopping up shall not take place until such new road or footpath is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Company and the road authority until two justices shall have certified that the new road or footpath has been completed to their satisfaction and is open for public use.

Stopping up roads and footpaths in case of diversion.

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Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the existing road or footpath is situate seven days' notice in writing of their intention to apply for the same.

As from the completion to the satisfaction of the road authority of the new road or footpath or as from the date of the said certificate as the case may be all rights of way over or along the existing roads or footpaths or portions authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway appropriate and use for the purposes of their undertaking the site of the road or footpath or portion thereof stopped up as far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Further
provision
as to repair
of roads
and foot-
paths.

44. Subject to the provisions of the section of this Act of which the marginal note is " Repair of roads where level not permanently altered " any road or footpath or portion of road or footpath made diverted or altered under the authority of this Act (except the stone iron or other structure carrying any such road or footpath over the railway which structure shall unless otherwise agreed be maintained by and at the expense of the Company) shall when made and completed unless otherwise agreed be maintained by and at the expense of the body or persons liable to maintain roads or footpaths of the same nature and in the same parish district borough or city as the road or footpath or portion of road or footpath in question.

As to
private
rights of
way over
lands
acquired.

45. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in

manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

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46. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are in this section included in the term “the owner” and the said properties are in this section referred to as “the scheduled properties”:
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the tribunal to whom the question is referred shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion

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less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :

- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably

and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

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The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

47. With respect to the properties shown on the deposited plans of Railway (No. 13) where the same is intended to be constructed in tunnel which are described or referred to in the Second Schedule to this Act notwithstanding anything contained in this Act or shown on the said plans the Company shall not be required to purchase or take the same or any part of the surface thereof but the Company may purchase and take and the owners of and other persons interested in any such property shall sell an easement or right of using the subsoil and under-surface thereof for the purposes of the undertaking of the Company and the provisions of the Lands Clauses Acts with respect to lands shall extend and apply to such easement or right of user as fully as if the same were lands within the meaning of those Acts except that no such easement or right of user shall be deemed part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845 Provided that the Company shall not acquire compulsorily an easement or right of using the subsoil and under-surface of any such property the ground surface of which is at a less height than twenty-five feet above the crown of the tunnel as the same shall be constructed.

Owners may be required to grant easements only for tunnel.

48. Notwithstanding anything contained in this Act or in any Act wholly or partly incorporated herewith the

Power to acquire

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easements
compul-
sorily in
certain
cases.

Company shall not be required to purchase any railway tramway tramroad river canal navigation watercourse drain dyke or sewer or any part thereof respectively which may be crossed or interfered with in constructing any of the works authorised by this Act but they may acquire such easements and rights in over or under any such railway river canal watercourse drain dyke or sewer as they may require for making maintaining working and using any such work and may give notice to treat in respect of such easements and rights describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements and rights as fully as if the same were lands within the meaning of those Acts.

Power to
certain
owners to
grant
easements
&c.

49. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the Lands Clauses Acts with respect to lands and rentcharges so far as the same are applicable in that behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
enter upon
property
for survey
and valua-
tion.

50. The Company and their surveyors officers contractors and workmen may at all reasonable hours in the daytime upon giving in writing for the first time twenty-four hours' and afterwards twelve hours' previous notice enter upon and into the lands and premises by this Act authorised to be taken and used by them for the purpose of surveying and valuing the said lands and premises without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and premises.

Costs of
arbitration
&c. in cer-
tain cases.

51. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount

of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Company have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case. Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

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52. In settling any question of disputed purchase money or compensation for lands acquired by the Company under the powers of this Act the tribunal settling the same shall not award any sum of money for or in respect of any improvement or alteration made or any building erected after the first day of November one thousand nine hundred and twenty-five if in the opinion of the tribunal the improvement alteration or building in respect of which the claim is made was made or erected with a view to obtaining or increasing compensation nor in the case of any estate or interest in the lands created after the said date which in the opinion of the tribunal was created with a view to obtaining or increasing compensation shall any sum of money be awarded so as to increase the total amount of compensation which would otherwise have been required to be paid in respect of the acquisition by the Company of such lands.

Compensation in case of recently altered buildings.

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Power to
make
agreements
with road
authorities
&c.

53. The Company may enter into and carry into effect agreements with the parties having the charge management or control of the roads streets footpaths or highways or any of them portions whereof shall under the provisions of this Act be altered or stopped up with reference to the construction or contribution towards the costs of such alteration or of any new road street footpath or highway to be substituted therefor and with reference to any other matters relating thereto and if so agreed the Company may delegate to such parties as aforesaid the power of constructing all or any of such alterations or new roads streets footpaths or highways in which they may be interested except the stone steel or other structure of any bridge over or under any railway and any expenses incurred by a local authority under and for any of the purposes of this section shall be deemed to be expenses under and for the purposes of the Public Health Act 1875.

Power to
take on
lease site
of floating
dock.

54. The Company may take on lease on such terms as may be agreed and may hold and use all or any of the lands delineated on the deposited plans relating to the floating dry dock in the county of Southampton authorised by the Southern Railway Act 1923.

Confirma-
tion of
works at
Wootton.

55. The Company may maintain and use the slipway landing place breakwater and works and buildings in connection therewith which have been constructed by the Company at Fishbourne and in Wootton Creek in the parish of Binstead in the county of the Isle of Wight and the expenditure of money thereon is hereby sanctioned and confirmed.

Confirma-
tion of
railway of
Exmouth
Docks
Company.

56.—(1) The Exmouth Docks Company (in this section referred to as “the Exmouth Company”) may maintain and use the portion of railway in the urban district of Exmouth in the county of Devon which has recently been constructed between a point west of the north end of Imperial Road and a point west of Halsdon Road and the expenditure of money thereon by the Company is hereby sanctioned and confirmed and the said portion of railway shall for all purposes be deemed to form part of the undertaking of the Exmouth Company.

(2) The Exmouth Company may abandon and discontinue the portion of their railway authorised by the Exmouth Docks Act 1864 rendered unnecessary by

the construction of the said portion of railway and the sale by the Exmouth Company and the purchase by the Company of the site of the portion of railway so abandoned and discontinued is hereby confirmed. A.D. 1926.

57. The Company may hold use and appropriate for the purposes of their undertaking the following lands and premises which have already been acquired by them and the expenditure of money by the Company or by any company whose undertaking now forms part of the undertaking of the Company in or about the purchase or acquisition thereof or the works executed thereon is hereby sanctioned and confirmed (that is to say):—

Confirmation of purchase of lands.

In the county of London—

Lands and premises in the metropolitan borough of Battersea known as No. 92 Wadhurst Road.

In the county of Kent—

Lands and premises in the borough of Ramsgate known as No. 16 Woodford Avenue and No. 18 Muir Road respectively.

Lands in the urban district of Sevenoaks on the east side of and adjoining the Sevenoaks Branch Railway and extending from the south end of Chatham Hill Road northward to the watercress bed.

In the county of Surrey—

Lands and premises in the county borough of Croydon known as Nos. 2 and 4 Gloucester Road.

Lands and premises in the borough of Guildford known as Nos. 40 to 52 (even numbers) Walnut Tree Close.

Lands in the urban district of Sutton known as Williams Brickfield and extending from Chaucer Road to the footpath in continuation of Bushey Lane.

Lands in the urban district of Leatherhead on the west side of and adjoining the Epsom and Leatherhead Railway between Leatherhead Station and Kingston Road.

A.D. 1926.
—

In the county of West Sussex—

Lands in the parish of Angmering adjoining and on the south side of Angmering Station.

In the county of Southampton—

Lands and premises in the parish of Milton on the south side of and adjoining the Bournemouth direct railway immediately west of New Milton Station.

Lands in the county borough of Southampton and the parish of North Stoneham on the south-east side of and adjoining the main road leading from Eastleigh to Shawford south of the Atlantic Park Hostel.

In the county of the Isle of Wight—

Lands below low-water mark in Spithead (in or adjoining the borough of Ryde) adjoining and on the north-west north-east and south-east sides of Ryde Pier Head.

In the county of Wilts—

Lands in the parish of Bemerton on the south side of and adjoining the Salisbury and Yeovil Railway and on the west side of and adjoining Cherry Orchard Road.

As to private street expenses in certain cases.

58.—(1) The Company shall be deemed not to be an owner or occupier for the purposes of section 150 of the Public Health Act 1875 in respect of any land acquired or used by the Company under or in pursuance of the powers or for the purposes of this Act (a) upon which any street as defined by the Public Health Acts and not being a highway repairable by the inhabitants at large shall wholly or partially front adjoin or abut and (b) which shall at the time of the laying out of such street be used by the Company solely as a part of their lines of railway or sidings stations or works and shall have no direct communication with such street.

(2) The expenses incurred by any urban or rural authority under the powers of the said section which but for this provision the Company would be liable to pay shall be repaid to the urban or rural authority as the case may be by the owners of the premises fronting adjoining or abutting on the said street other than the

Company and in such proportions as shall be settled by the surveyor of the urban or rural authority as the case may be. A.D. 1926.

(3) In the event of the Company subsequently making a communication with such street they shall notwithstanding such repayment as last aforesaid pay to the urban or rural authority as the case may be the expenses which but for the foregoing provision the Company would in the first instance have been liable to pay.

(4) The urban or rural authority as the case may be shall divide among the owners for the time being other than the Company the amount so paid by the Company to the urban or rural authority as the case may be less the costs and expenses attendant upon such division in such proportion as shall be settled by the said surveyor whose decision shall be final and conclusive.

(5) This section shall not apply to any street existing at the passing of this Act.

59. The period now limited by the Southern Railway Act 1923 for the compulsory purchase of— Extension
of time for
compulsory
purchase of
lands.

(a) lands required for the purposes of or in connection with the floating dry dock by that Act authorised;

(b) lands required for the purposes of or in connection with the new road at Feniton by that Act authorised; and

(c) lands in the urban district of Esher and the Dittons by that Act authorised to be acquired;

is hereby extended until the first day of October one thousand nine hundred and twenty-nine but on that date the powers for such compulsory purchase shall cease except so far as such powers shall then have been exercised.

60. On and from the date of vesting the undertaking of the Newhaven Company is hereby transferred to and vested in and shall for all purposes form and may be carried on as part of the undertaking of the Company and on and from the said date the Newhaven Company is hereby dissolved except for the purpose of winding up its affairs. Under-
taking of
Newhaven
Company
vested in
Company.

A.D. 1926.

—
Considera-
tion for
transfer of
Newhaven
Company.

61.—(1) The several persons who immediately before the passing of this Act were the registered holders of stock in the capital of the Newhaven Company (other than the Company) shall in lieu of and in exchange for the stock held by them respectively become and be registered holders of stock of the Company of the class and in the proportions hereunder mentioned (that is to say) :—

Stocks of Newhaven
Company.

Stocks of Company to be
issued.

£100 $4\frac{1}{2}$ per cent. perpetual
debenture stock

£112 10s. 4 per cent. debenture stock

£100 general capital stock
(4 per cent. guaranteed)

£80 5 per cent. guaranteed
preference stock.

(2) The Company shall be deemed to have created and issued by virtue of this Act and without further or other authority the amount of four per cent. debenture stock and five per cent. guaranteed preference stock necessary to give effect to the provisions of this section and the creation and issue of such stocks shall not affect the powers of the Company to create and issue capital (including debenture stock) as they existed at the date of the passing of this Act and the stocks so created and issued shall be deemed to be part of and shall rank *pari passu* with the existing four per cent. debenture stock and five per cent. guaranteed preference stock of the Company respectively and shall carry interest as from the date of vesting.

Cancellation
of stocks of
Newhaven
Company.

62. On and after the passing of this Act all stocks at any time issued by the Newhaven Company shall be cancelled and all charges constituted by any such stocks shall cease and determine.

Stock-
holders to
accept stock
of Company.

63. The persons who by virtue of this Act become the registered holders of stock of the Company shall (subject to the provisions of this Act) accept and be deemed to have accepted the stock allocated to them under this Act in substitution for the stock of the Newhaven Company held by them and in satisfaction of all claims arising thereunder.

New
certificates.

64. Any holder of stock of the Newhaven Company in respect of which stock of the Company is allocated under this Act who shall deliver to the secretary of

the Company the certificate for such stock to be cancelled shall be entitled without payment to receive from the Company in substitution for the certificate so delivered a certificate of the stock to which such holder is entitled under this Act in substitution for the stock of which the certificate is so delivered : A.D. 1926.

Provided that until such substitution the certificates of stock of the Newhaven Company for which stock of the Company is to be substituted shall (subject to the provision in this Act contained relating to fractional parts of a pound of stock) be deemed to be certificates of the stock of the Company allocated to the holders of such certificates by this Act.

65. If any certificate of any stock of the Newhaven Company in substitution for which stock of the Company is allocated under this Act be lost or destroyed then upon proof thereof and upon an indemnity being given to the reasonable satisfaction of the directors of the Company against any claim in respect of such lost or destroyed certificate the Company shall deliver to the person entitled to such certificate a certificate of the stock of the Company which is allocated to him by this Act in substitution for the stock of which the certificate has been lost or destroyed. Lost certificates.

66. No person shall become entitled under this Act to any fractional part of a pound of stock of the Company but in every case in which any person would but for this provision have become entitled to a fractional part of a pound of any such stock the Company may at their option either receive and recover from such person such a sum as will at the market value of such stock on the date of vesting make up an even pound of stock which shall then be issued to him or pay to such person in cash the aforesaid market value of such fractional part. Fractions.

67. Stock of the Company substituted by virtue of this Act for any stock of the Newhaven Company shall be held upon and subject to the same trusts liens charges powers and other legal or equitable rights privileges and restrictions as affected the stock for which by virtue of this Act the stock of the Company is substituted and any reference in any Act of Parliament Trusts affecting stocks of Newhaven Company.

A.D. 1926. deed will codicil book document instrument or writing to any stock of the Newhaven Company shall be deemed to be a reference to the stock of the Company substituted therefor by virtue of this Act.

Repeal of certain provisions of Acts relating to Newhaven Company.

68. All the provisions of the Acts relating to the Newhaven Company with reference to the incorporation and constitution of that company and all unexercised powers of raising money conferred upon that company are hereby repealed.

Application of byelaws to North Devon and Cornwall Junction Light Railway.

69. The byelaws and regulations made by the Company and from time to time in force—

(a) for regulating the travelling upon and using of their railways for maintaining order in and regulating the use of their railway stations and the approaches thereto and for other purposes;

(b) for the regulation of the loading unloading and conveyance of explosives on their railways; and

(c) any other byelaws and regulations relating to or from time to time in force upon the railways and undertaking of the Company;

shall extend and apply to and may be enforced in respect of the railways and undertaking of the North Devon and Cornwall Junction Light Railway Company so long as such railways and undertaking are worked by the Company.

Agreements with Great Western Railway Company as to certain traffic.

70. The Company and the Great Western Railway Company may enter into and carry into effect agreements with respect to the joint working receiving forwarding and management of the traffic of those Companies at any place where each of them have or may hereafter have a station goods yard or depôt or the working receiving forwarding and management by one Company of the traffic of the other Company thereat and with respect to the joint working maintenance and user of any such station goods yard or depôt by the said Companies and the joint holding and user of property and the joint employment of offices and servants for any of the purposes aforesaid:

Provided that nothing in this section contained shall be deemed to authorise the making of agreements for

the allocation of traffic or the pooling of receipts or otherwise for effecting a combination which would contravene the purposes of the Railways Act 1921 except in accordance with and subject to the provisions of section 19 of that Act. A.D. 1926.
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71.—(1) Subject to the conditions in this section set forth any two justices having jurisdiction in any one of the counties cities or boroughs in which the constables hereinafter mentioned are to act may on the application of the Company appoint all or so many as they think fit of the persons recommended to them for that purpose by the Company to act as constables in on and in the vicinity of the whole of the railways stations works and undertakings now or hereafter belonging or leased to or worked by the Company either solely or jointly with any other company or companies or to or by any joint committee now or hereafter incorporated or constituted by Act of Parliament on which the Company may be represented and (with the consent of the railway company owning the same) in on and in the vicinity of any station premises adjoining any station premises of the Company and the following provisions shall apply to every appointment so made :— Railway
constables.

- (a) Every person so appointed shall make oath or declaration in due form of law before any justice having jurisdiction in any one of the counties cities or boroughs in which such person is to act duly to execute the office of a constable;
- (b) Every person so appointed and having been sworn or having made declaration as aforesaid shall during the continuance of his appointment have all the powers protection and privileges of a constable in respect of the exercise of his duties and may follow and arrest any person who has committed in on or in the vicinity of such railways stations works or undertakings any offence for which he might have been arrested while in on or in the vicinity of the same Provided that no such powers shall be exercised outside the limits of the premises of the Company or the station

A.D. 1926.
—

premises of any other railway company adjoining the station premises of the Company except in regard to matters connected with or affecting the Company or any such other railway company or their respective undertakings;

- (c) Any two justices assembled and acting together or the Company may dismiss from his office or accept the resignation of any constable so appointed and thereupon all powers protection and privileges belonging to such person by virtue of such appointment shall wholly cease. No person so dismissed or resigning shall be capable of being re-appointed except with the consent of the authority by whom he was dismissed;
- (d) The local authorities of any county city or borough shall not be liable for any expense of or be responsible for any acts or defaults of such constables or for anything connected with or consequent upon their appointment and nothing in this Act contained shall restrict or affect the jurisdiction or powers of the respective local authorities of the county city or borough as the case may be or of any police force;
- (e) A constable appointed as aforesaid shall not act as such under the authority of this Act unless he be in uniform or provided with an authority to act as a constable which authority the justice before whom such constable makes oath or declaration as aforesaid is hereby empowered to grant and if the constable be not in uniform he shall show such authority whenever called upon to do so.

(2) Every person who immediately prior to the passing of this Act is duly appointed to act as a constable employed by the Company shall be deemed to have been duly appointed to act in pursuance of this section as if his appointment had been made thereunder.

(3) Subsections (1) and (2) of section 95 (Railway constables) of the Southern Railway Act 1924 are hereby repealed.

72. Section 10 (Terminable loans and debenture stock—priorities) of the Railways (Southern Group) Amalgamation Scheme 1922 shall be read and have effect as if the words “the first day of January and the first day of July” were substituted therein for the words “the thirtieth day of June and the thirty-first day of December.”

A.D. 1926.

As to date
of payment
of interest on
terminable
loans and
debenture
stock.

73. Of the additional capital which the Company are now authorised to raise by the creation and issue of ordinary stock or preference stock any part or parts not exceeding in the aggregate four million pounds may be raised by the creation and issue of five per cent. guaranteed preference stock and the schemes and Acts of Parliament authorising such additional capital shall be construed and have effect accordingly.

Power to
issue
guaranteed
preference
stock.

74. Notwithstanding anything contained in the Companies Clauses Act 1863 or in any other Act any guaranteed preference stock or preference stock or redeemable preference stock created under or in pursuance of the powers of this Act or any former Act of Parliament or any scheme relating to the Company shall (if so determined by any resolution in pursuance of which the same shall have been created and issued) form part of or rank *pari passu* with and shall (subject to the date of redemption of redeemable preference stock) confer the like privileges and be subject to the like restrictions as the existing guaranteed preference stock or preference stock or redeemable preference stock respectively of the Company or any other preference stock of the Company which may be in existence at the date of the creation and issue of such stock.

As to prefer-
ence stocks.

75. As from the date of conversion the ordinary A stock and the ordinary B stock in the capital of the Company shall be converted into deferred ordinary stock of the Company in the proportions hereunder mentioned and the several persons who immediately before the passing of this Act were the registered holders of ordinary A stock and ordinary B stock respectively shall in respect of the said stock held by them respectively be entitled and be deemed to be registered holders of deferred ordinary stock of the Company ranking *pari passu* with the existing deferred ordinary stock

Conversion
of ordinary
A and B
stocks.

A.D. 1926. of the Company in the said proportions (that is to say) :—

Existing stocks.

Stock to be issued.

£100 ordinary A stock

£95 deferred ordinary stock

£100 ordinary B stock

£25 deferred ordinary stock.

Capital
powers not
to be
affected.

76. Nothing in the section of this Act of which the marginal note is “Conversion of ordinary A and B stocks” shall in any way affect the powers of the Company to create and issue capital or to borrow money on mortgage of their undertaking.

Certificates
of stocks.

77. Any holder of ordinary A stock or ordinary B stock of the Company who shall deliver to the secretary of the Company the certificate for such stock shall be entitled without payment to receive from the Company in substitution for the certificate so delivered a certificate of the stock to which such holder is entitled under this Act upon the conversion of the stock of which the certificate is so delivered :

Provided that until such substitution the certificates of ordinary A stock or ordinary B stock of the Company shall (subject to the provision in this Act contained relating to fractional parts of a pound of deferred ordinary stock) be deemed to be certificates of the deferred ordinary stock of the Company to which the holders of such certificates are under this Act entitled.

Lost certifi-
cates
of ordi-
nary A and
B stocks.

78. If any certificate of any ordinary A stock or ordinary B stock of the Company be lost or destroyed then upon proof thereof and upon an indemnity being given to the reasonable satisfaction of the directors of the Company against any claim in respect of such lost or destroyed certificate the Company shall deliver to the person entitled to such certificate a certificate for the deferred ordinary stock of the Company to which he is under this Act entitled.

Fractional
parts of
deferred
ordinary
stock.

79. No person shall become entitled under this Act to any fractional part of a pound of deferred ordinary stock of the Company but in every case in which any person would but for this provision have become entitled to a fractional part of a pound of such stock the Company may at their option either receive and recover from such person such a sum as will at

the market value of such stock on the date of the passing of this Act make up an even pound of stock which shall then be issued to him or pay to such person in cash the aforesaid market value of such fractional part.

A.D. 1926.
—

80. Deferred ordinary stock of the Company into which by virtue of this Act the ordinary A stock or ordinary B stock of the Company is converted shall be held upon and subject to the same trusts liens charges powers and other legal or equitable rights privileges and restrictions as affected the stock prior to conversion and any reference in any enactment deed will codicil book document instrument or writing to any ordinary A stock or ordinary B stock of the Company shall be deemed to be a reference to the deferred ordinary stock of the Company into which the same is converted by virtue of this Act.

Trusts affecting ordinary A and B stocks.

81. The Company may appropriate and apply to all or any of the purposes of this Act being purposes to which capital is properly applicable any of the moneys which they have raised or are authorised to raise and which are not required for the purposes to which they are made specially applicable.

Power to Company to apply funds.

82. The Great Western Railway Company may apply to the purposes of this Act in which they are interested and to which capital is properly applicable any sums of money which they have already raised or are authorised to raise and which are not required for the purposes to which they are made specially applicable.

Power to Great Western Railway Company to apply funds.

83. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

84. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required

Deposit for future Bills not to be paid out of capital.

A.D. 1926. — to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

Provision
as to general
Railway
Acts.

85. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

Works
below high-
water mark
not to be
constructed
without
consent of
Board of
Trade.

86. The Company shall not under the powers of this Act construct on over or under the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Crown
rights.

87. Except as hereinafter expressly provided nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His

Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose. A.D. 1926.
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88. Notwithstanding the provisions contained in the section of this Act of which the marginal note is “Crown rights” or in any public statute His Majesty and His lessees for their respective interests may work any minerals belonging to His Majesty in right of His Crown under or adjacent to lands and works of the Company authorised to be taken or constructed by this Act but in the event of any such right being at any time intended to be exercised section 77 to 85 (both inclusive) of the Railways Clauses Consolidation Act 1845 as amended by the Mines (Working Facilities and Support) Act 1923 and the First Second and Third Schedules to such last mentioned Act shall apply as if the same were in relation to such minerals incorporated in this Act and as if the Commissioners of Crown Lands were the mine owners or royalty owners as the case may be and so that any compensation payable by the Company to or for the benefit of His Majesty as the mine owner or royalty owner or payable to the Company by His Majesty as such owner shall be payable to or by the Commissioners of Crown Lands as the case may be. Crown
minerals.

89. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of
Act.

A.D. 1926.
—The SCHEDULES referred to in the
foregoing Act.THE FIRST SCHEDULE.PROPERTIES WHEREOF PORTIONS ONLY MAY BE TAKEN
COMPULSORILY.

Work or Lands.	Area.	Nos. on deposited Plans.
Railway (No. 1) -	Metropolitan borough of Camberwell.	20 to 23 28 29.
Railways (Nos. 2 and 3).	Metropolitan borough of Deptford.	3.
	Metropolitan borough of Lewisham.	4.
Widening (No. 2) -	Metropolitan borough of Lewisham.	26.
Widening (No. 4) -	Metropolitan borough of Lewisham.	14 16 18 35 38 to 42 44 70.
	Urban district of Beckenham.	3 5 9 10 11.
Widening (No. 5)	} Urban district of Beckenham.	2 10 14 to 24.
Railways (Nos. 4 and 5).		
Railways (Nos. 6 and 7).	Metropolitan borough of Lewisham.	3.
Railway (No. 8) -	Metropolitan borough of Lewisham.	2 7.
Railway (No. 9) -	City of Rochester -	15.
Widening (No. 6) -	Parish of Hildenborough	25 26 31 42.
Railway (No. 10) -	Urban district of Tonbridge.	10 29 to 34 47.
Widening (No. 7) -	Parish of Yalding -	25.
	Parish of Marden -	46 48 to 53 84 85 87 96.
	Parish of Staplehurst -	20A 25 35 36 38 39.
	Parish of Headcorn -	53 to 58 80.
Widening (No. 9) -	County borough of Bournemouth.	91 94 to 100 109 112 to 117 150 151 152 154 158 to 161 164 202 to 207 209 210 229 230 234 236 to 262.
	Parish of Holdenhurst -	3 4 5 7 11 12 13 13A 13B 14 to 18 18A 18B 18C 19 19A 19B 20 22 22A.

Work or Lands.	Area.	Nos. on deposited Plans.	A.D. 1926.
Widening (No. 10)	County borough of Bournemouth.	3 4.	
Widening (No. 11)	Parish of Brading -	14 16 to 21 23.	
Lands at Haywards Heath.	Urban district of Haywards Heath.	1.	
Lands at Southampton (St. Deny's).	County borough of Southampton.	1 to 18.	
Lands at Southampton (Swaythling).	County borough of Southampton.	2.	
Lands at Poole -	Borough of Poole -	1.	

THE SECOND SCHEDULE.

PROPERTIES UNDER WHICH EASEMENTS ONLY MAY BE TAKEN.

Work.	Area.	Nos. on deposited Plans.
Railway (No. 13) -	County borough of Brighton	2 3 3A 4 to 20.

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